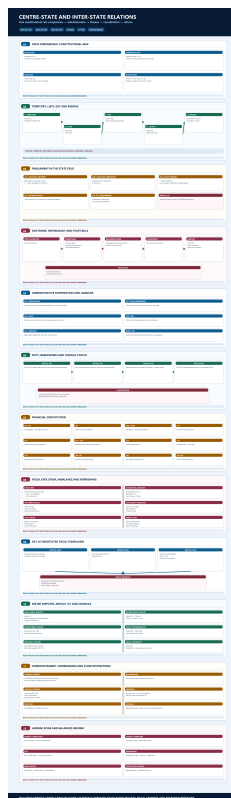


COMPLETE LEARNING SESSION

Centre-State and Inter-State Relations - Complete Learning Session

Constitutional text, institutions, cases, fiscal data and answer writing



Continuous master flowchart; labels summarise constitutional and institutional relationships.

Prepared from repository knowledge, official material and clearly marked analysis; no unsupported statistics or PYQs.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Centre-State and Inter-State Relations - Complete Learning Session	5
Sources and date	5
Learning roadmap	5
BASIC LEARNING SESSION	5
SESSION 1 - CONSTITUTIONAL MAP: FOUR DIMENSIONS	5
SESSION 2 - LEGISLATIVE RELATIONS: COMPETENCE BEFORE CONFLICT	7
SESSION 3 - PARLIAMENT IN THE STATE FIELD	8
SESSION 4 - UNION CONTROL OVER STATE LEGISLATION	10
SESSION 5 - FEDERAL SUPREMACY AND HARMONIOUS CONSTRUCTION	12
SESSION 6 - ADMINISTRATIVE RELATIONS: IMPLEMENTATION, DIRECTIONS AND CONSEQUENCE	14
SESSION 7 - DELEGATION, SERVICES AND AGENCIES	15
SESSION 8 - EMERGENCY-LINKED CENTRE-STATE CONSEQUENCES: ARTICLES 355-365	16
SESSION 9 - FINANCIAL RELATIONS: CONSTITUTIONAL ARCHITECTURE	18
SESSION 10 - EVOLUTION OF FISCAL FEDERALISM	20
SESSION 11 - SIXTEENTH FINANCE COMMISSION: ACCEPTED 2026-31 CONTROL	22
SESSION 12 - GST COUNCIL, STATE BORROWING AND FISCAL AUTONOMY	24
SESSION 13 - INTER-STATE WATER DISPUTES: ARTICLE 262	25
SESSION 14 - INTER-STATE COUNCIL AND ZONAL COUNCILS	27
SESSION 15 - FULL FAITH AND CREDIT: ARTICLE 261	29
SESSION 16 - FREEDOM OF TRADE, COMMERCE AND INTERCOURSE	30
SESSION 17 - MINOR MINERALS: UNION NOTIFICATION, STATE RULE-MAKING	31
SESSION 18 - COMMISSIONS ON CENTRE-STATE RELATIONS	32
BASIC MCQS / REMEDIATION	34
Q1. With reference to Article 245, consider the following statements:	34
Q2. Which sequence correctly reflects the constitutional priority under Article 246?	35
Q3. Article 246A is best described as:	35
Q4. Residuary legislative power, including residuary taxation, is located in:	35
Q5. Which combination correctly states the Article 249 route?	36
Q6. A parliamentary law made under Article 250:	36

Q7. Consider the following statements on Article 252:	36
Q8. Which statement correctly distinguishes Articles 253 and 356-357?	37
Q9. Which set is correctly matched?	37
Q10. Which proposition about delegated and colourable legislation is correct?	37
Q11. A State law on a Concurrent subject, repugnant to an earlier parliamentary law, has received Presidential assent. Which result follows?	38
Q12. Which statement is correct about State Bills and related procedural controls?	38
Q13. Under Articles 256 and 257, the Union may:	38
Q14. Which matching is correct?	39
Q15. Which statement about All-India Services is correct?	39
Q16. Regarding CBI jurisdiction and the 2024 West Bengal ruling, which statement is most accurate?	39
Q17. Which constitutional sequence is correct?	40
Q18. Which statement correctly links public funds and tax assignment?	40
Q19. Consider the following statements:	40
Q20. Which option correctly completes the grants and procedure map?	41
Q21. The Finance Commission under Article 280:	41
Q22. Which statement reflects the accepted Sixteenth Finance Commission position for 2026-27 to 2030-31?	41
Q23. For a formal GST Council decision, which voting structure is correct?	42
Q24. What did Union of India v. Mohit Minerals (2022) hold about the GST Council?	42
Q25. Under Article 293, when does a State require Union consent for further borrowing?	42
Q26. Which statement correctly compares the two 1956 river-water statutes?	43
Q27. Which proposition about Articles 131 and 262 is accurate?	43
Q28. Which institutional classification is correct?	43
Q29. Article 261 provides that:	44
Q30. After Jindal Stainless (2016), which statement best describes Part XIII?	44
Q31. Which commission recommendation set is correctly matched?	44
Q32. Which reform package best balances Union capacity with State autonomy?	45
PYQS AND ANSWER PRACTICE	45
Routed PYQs with complete solutions	45
Six original Mains questions with full model answers	51
OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER	54
Advanced 1 - Executive federalism as a repeated-game problem	55

Advanced 2 - Equalisation, incentives and fiscal moral hazard	55
Advanced 3 - Dispute systems need different doors	55
CONSOLIDATED REGISTER NOTES	55
COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM	59

Centre-State and Inter-State Relations - Complete Learning Session

Evidence key: [FACT] constitutional, statutory, judicial or official fact · [ANALYSIS] reasoned synthesis · [CURRENT] dated status · [LIMIT] qualification. Practice included: **32 MCQs**, ABCD x8, **128 unique option explanations**, **32 unique traps**, **11 audited direct/supporting PYQs**, and **6 original solved Mains questions**.

Sources and date

- Canonical Core: upsc-ai-kit\knowledge\Polity\basic\Centre-State-Relations.md.
- Optional enrichment:
upsc-ai-kit\knowledge\Polity\advanced\13_Centre-State-and-Inter-State-Relations.md.
- Complete package owner, official syllabus mapping, answer-worthiness audit and routed 2018-2025 PYQ ledgers.
- OCR-searchable local *Indian Polity* and *Courseware on Indian Polity* chapters on Centre-State and Inter-State Relations.
- Constitution of India; Inter-State River Water Disputes Act, River Boards Act, States Reorganisation Act, NEC Act, DSPE Act and MMDR Act.
- Official Supreme Court judgments/orders: *State of West Bengal* (1962), *Hoechst Pharmaceuticals* (1983), *S.R. Bommai* (1994), *Jindal Stainless* (2016), *Mohit Minerals* (2022), Punjab Governor (2023), Kerala borrowing (2024), West Bengal CBI-consent suit (2024), and the 20 November 2025 Article 143 opinion.
- Official Finance Commission Explanatory Memorandum, GST Council, Inter-State Council Secretariat, Ministry of Home Affairs and Ministry of Jal Shakti material checked through **7 September 2026, Asia/Kolkata**.
- [LIMIT] Current counts are used only when a dated official source was verified. Tribunal status is taught dispute by dispute rather than through a forced total.
- [LIMIT] Topic 12 retains federal-system theory; Topic 14 retains detailed Emergency procedure. Topic 13 is complete on the relation-level operation of those mechanisms.

Learning roadmap

Stage	Sessions	Coverage
Foundation	1-2	Four channels; territory, Lists, GST competence and residue
Core	3-12	State-field gateways, doctrines, State Bills, administration, fiscal architecture, GST and borrowing
Synthesis	13-15	Water adjudication, Article 131, councils, full faith and common market
Advanced synthesis	16-18	Commissions, reform logic, statutory layering and integrated answer design
Optional Advanced	separate block	Repeated-game trust, equalisation and institution-fit refinements

BASIC LEARNING SESSION

SESSION 1 - CONSTITUTIONAL MAP: FOUR DIMENSIONS

Stage: Foundation

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Centre-State relations operate through distinct legislative, administrative, financial and inter-State channels.

Technical definition: Articles 245-263 and 268-293 allocate competence, implementation, coordination and fiscal capacity.

VISUAL FIRST

CONSTITUTIONAL RELATIONS

- +-- LEGISLATIVE: competence and conflict
 - +-- ADMINISTRATIVE: implementation, direction and entrustment
 - +-- FINANCIAL: taxes, grants, devolution and borrowing
 - +-- INTER-STATE: disputes, recognition, coordination and common market
- |
- +--> diagnose the channel before proposing a remedy

Core teaching

Dimension	Principal Articles	Core question
Legislative	245-255, Part XI	Who may make the law and what happens on conflict?
Administrative	256-263, Part XI	Who implements, directs, delegates and coordinates?
Financial	265-293, Part XII	Who taxes, receives, grants and borrows?
Inter-State/economic	261-263 and 301-307	How are disputes, recognition and the common market managed?

- [ANALYSIS] The dimensions interact. A legally State subject may depend on Union finance; a shared tax may require administrative coordination; a water dispute may become a political and fiscal conflict.
- [ANALYSIS] High-scoring answers therefore identify the dimension before listing grievances.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A high-scoring answer identifies the dimension before diagnosing conflict.

MUST-WRITE KEYWORDS

legislative relations; administrative relations; financial relations; inter-State relations; constitutional allocation; federal coordination

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: A four-channel classification prevents a generic federalism answer from mixing legal competence with implementation, money and dispute settlement. **Named evidence:** Articles 245-263, 266-293 and 301-307; Seventh Schedule. **Analysis:** The classification decides whether the paragraph should test competence, implementation, fiscal capacity or coordination; a water dispute and a cess grievance therefore require different constitutional routes. **Qualification:** The channels interact in practice, but overlap does not erase their different legal triggers, institutions and remedies.

NAMED EVIDENCE

Articles 245-263, 266-293 and 301-307; Seventh Schedule.

PRELIMS TRAP

Do not treat the integrated judiciary as a fifth co-equal distribution of governmental power.

MAINS USE

Use as the introduction and organising diagram for any broad Centre-State relations question.

MINI RECAP

First identify the channel; then identify the Article, institution, friction and remedy.

SESSION 2 - LEGISLATIVE RELATIONS: COMPETENCE BEFORE CONFLICT

Stage: Foundation

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative relations determine territorial reach and which legislature may act on a subject.

Technical definition: Articles 245-248 and the Seventh Schedule must be applied before conflict doctrines or Article 254.

VISUAL FIRST

Step	Question	Constitutional anchor
1	Where may the law operate?	Article 245; territorial nexus
2	Which field owns the subject?	Article 246; Seventh Schedule
3	Is it GST?	Article 246A
4	Is it genuinely unenumerated?	Article 248 + List I Entry 97
5	Is an ancillary court needed?	Article 247

Core teaching

Territorial reach: Article 245

- [FACT] Parliament may legislate for the whole or any part of India; a parliamentary law is not invalid merely because it has extra-territorial operation.
- [FACT] A State legislature ordinarily legislates for the State or part of it.
- [FACT] The territorial-nexus doctrine permits State law to affect an extra-State object where the connection is real and the liability is pertinent to that connection.

Distribution: Article 246 and the Seventh Schedule

List	Standard current count	Primary legislature	Illustrations
Union	100	Parliament	Defence, currency, inter-State trade, inter-State migration/quarantine
State	61	State legislature	Police, public health, agriculture, markets, prisons
Concurrent	52	Both	Criminal law, marriage, education, forests

- [FACT] Article 246(1) gives Union List competence notwithstanding the other clauses.
- [FACT] Article 246(2) creates concurrent competence; Article 246(3) gives State List competence subject to clauses (1) and (2).
- [FACT] Article 248 and Union Entry 97 place residuary legislative and taxing power with Parliament.
- [FACT] The 42nd Amendment moved education, forests, weights and measures, protection of wild animals and birds, and administration of justice from State to Concurrent.
- [LIMIT] List entries are fields of legislation, not narrow statutory definitions; courts interpret them broadly.

Articles 247 and 248: often-missed completion

- [FACT] Article 247 permits Parliament to establish additional courts for better administration of laws made by Parliament or of existing laws with respect to a Union List matter.
- [FACT] Article 248 and Union List Entry 97 give Parliament exclusive power over a matter, including a tax, not enumerated in List II or List III.
- [LIMIT] A subject fairly located in the State List cannot be relabelled as residuary merely because national uniformity is convenient.

- [FACT] Article 246A is a special GST competence provision: State legislatures and Parliament have simultaneous power, while Parliament has exclusive power over GST on inter-State supplies.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Competence comes before supremacy in every legislative-relations answer.

MUST-WRITE KEYWORDS

Article 245; Article 246; Seventh Schedule; territorial nexus; Article 248; legislative competence

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Start with territorial reach under Article 245, identify the controlling field under Article 246, separate Article 246A GST power, and reach Article 248 only after excluding Lists II and III. **Named evidence:** Articles 245-248; Seventh Schedule; Forty-second Amendment; territorial-nexus doctrine. **Analysis:** Article 245 answers where a law may operate, Article 246 allocates the field, Article 246A separately governs GST, and Article 248 receives only a genuinely unenumerated residue. **Qualification:** List entries are read broadly and incidental overlap may survive; national importance alone cannot convert a State subject into the residuary field.

NAMED EVIDENCE

Articles 245-248; Seventh Schedule; Forty-second Amendment; territorial-nexus doctrine.

PRELIMS TRAP

Standard examination counts describe surviving entries; omitted and inserted entry numbers explain different literal counts.

MAINS USE

Use for competence problems, new-technology subjects and the opening half of repugnancy answers.

MINI RECAP

Territory and subject are separate questions; residue is genuinely residual.

SESSION 3 - PARLIAMENT IN THE STATE FIELD

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution permits Parliament to enter the State field through five separately triggered routes.

Technical definition: Articles 249, 250, 252, 253 and 356 differ in initiation, duration, territorial scope and amendment control.

VISUAL FIRST

NORMAL RULE: LIST II -> STATE LEGISLATURE

249 -> Rajya Sabha national-interest resolution

250 -> National Emergency in operation

252 -> resolutions of two or more States

253 -> treaty / international obligation

356-357 -> President's Rule in the concerned State

EACH DOOR HAS A DIFFERENT TRIGGER, TERRITORY AND SURVIVAL RULE.

Core teaching

Article	Trigger	Duration/effect	Federal safeguard
249	Rajya Sabha: two-thirds present and voting; national interest	Resolution up to one year, renewable; law has six-month tail	State chamber supplies trigger
250	National Emergency in operation	Law has six-month tail after Emergency ends	Temporary crisis route
252	Resolutions by two or more State legislatures	Applies to requesting/adopting States; Parliament alone amends/repeals	State-initiated consent
253	Treaty or international decision implementation	Operates as needed for implementation	National external obligation
356	Parliament exercises State legislative power during President's Rule	Parliamentary law continues until altered by competent legislature	Bommai review and restoration safeguards

Mnemonic: R-N-S-I-P - Rajya Sabha, National Emergency, States' request, International obligation, President's Rule.

- [LIMIT] Article 249 does not require an Emergency.
- [LIMIT] Under Article 252 a participating State cannot unilaterally amend the parliamentary enactment.
- [LIMIT] Farm-market or disaster examples must be analysed through the actual List entry and statute, not political labels alone.

Exact duration, survival and consent effects

- [FACT] An Article 249 resolution lasts for the period stated, not exceeding one year; it may be renewed for further periods not exceeding one year each. A parliamentary law made under it ceases to have effect six months after the resolution ceases, except for things already done or omitted.
- [FACT] An Article 250 law similarly ceases six months after the National Emergency ends, subject to past operation.
- [FACT] Article 251 makes a parliamentary law under Article 249 or 250 prevail over an inconsistent State law while the parliamentary law remains effective; the State law is inoperative only to the extent of repugnancy.
- [FACT] Under Article 252, a parliamentary law applies to the resolving States and any later-adopting State. Amendment or repeal must be by Parliament in the same manner; a participating State cannot act alone.
- [FACT] Article 253 is not consent-based: it implements treaties, agreements, conventions or decisions made at international conferences, associations or other bodies.
- [FACT] A law made while Parliament exercises State legislative power under Articles 356-357 continues after the proclamation ends until a competent legislature or authority alters, repeals or amends it.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The State List is primary, but its constitutional doors are not interchangeable.

MUST-WRITE KEYWORDS

Article 249; Article 250; Article 252; Article 253; Article 356

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Compare the State-List gateways by trigger, duration, territorial reach and who may later amend or repeal the resulting law. **Named evidence:** Articles 249-253 and 356-357; Article 251 survival rule. **Analysis:** Rajya Sabha authorisation and National Emergency create temporary laws, Article 252 rests on State resolutions, Article 253 implements international obligations, and Article 357 uses a different continuation rule. **Qualification:** The five routes cannot be merged into a general Union override, and Article 252 consent does not let a participating State repeal the parliamentary enactment alone.

NAMED EVIDENCE

Articles 249-253 and 356-357; Article 251 survival rule.

PRELIMS TRAP

Article 249 is not an Emergency power, while Article 252 begins with State legislative resolutions rather than executive consent.

MAINS USE

Use a five-row table whenever UPSC asks whether Parliament may legislate on a State subject.

MINI RECAP

The State List remains the norm; each Union entry route is textually bounded.

SESSION 4 - UNION CONTROL OVER STATE LEGISLATION

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Union control may arise through prior presidential sanction, gubernatorial reservation or presidential consideration.

Technical definition: Articles 200, 201 and 304(b) create distinct procedural controls over State Bills.

VISUAL FIRST

Stage	Device	Constitutional effect
Before introduction	Previous Presidential sanction where constitutionally required	Procedural gateway, including Article 304(b)
After State passage	Governor acts under Article 200	Assent, withholding-and-return route for a non-Money Bill, or reservation
Presidential stage	Article 201	Assent, withholding, or directed return of a non-Money Bill
Concurrent conflict	Article 254(2) Presidential assent	State law may prevail in that State, subject to later parliamentary override
Procedural defect	Article 255	Specified recommendation/sanction defect may be cured by proper assent; competence is not cured

Core teaching

Prior presidential sanction

- [FACT] Some State Bills require previous presidential sanction, including a Bill imposing a reasonable restriction under Article 304(b).
- [FACT] A State Bill affecting High Court powers so as to endanger its constitutional position must be reserved under the proviso to Article 200.
- [ANALYSIS] Prior sanction and reservation are distinct: one is permission before legislative introduction or consideration; the other sends a passed Bill for presidential decision.

Articles 200 and 201

- [FACT] A Governor presented with a State Bill acts through the constitutional options of assent, withholding, return of a non-Money Bill, or reservation for the President as applicable.
- [FACT] Under Article 201 the President may assent or withhold assent; for a non-Money Bill the President may direct return through the Governor for reconsideration.
- [FACT] If the State legislature passes the returned Bill again, Article 201 does not impose the Article 200-style obligation that assent must follow.

Current Governor-assent control

- [FACT] In *State of Punjab v. Principal Secretary to the Governor of Punjab* (10 November 2023), the Supreme Court held that the Governor cannot keep duly passed Bills pending indefinitely and must act within Article 200.
- [CURRENT] The 20 November 2025 advisory opinion rejects court-created fixed timelines and deemed assent.
- [CURRENT] Prolonged, unexplained and indefinite inaction remains open to limited mandamus requiring action, without the court choosing the constitutional option.
- [LIMIT] These propositions explain the Centre-State relation; detailed Governor-office doctrine remains with the Governor topic.

Article 255: limited procedural cure

- [FACT] Article 255 treats specified requirements of recommendation or previous sanction as procedural. A law is not invalid solely for non-compliance when the constitutionally specified assent has been given.
- [LIMIT] Article 255 does not cure absence of legislative competence, a Fundamental-Rights violation or an ultra vires delegated rule.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Prior sanction and reservation occur at different stages and produce different consequences.

MUST-WRITE KEYWORDS

Article 200; Article 201; Article 304(b); prior sanction; reservation; Governor assent

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Union-facing control over a State Bill operates at distinct procedural stages rather than through one general veto. **Named evidence:** Articles 200, 201, 254(2), 255 and 304(b), Punjab Governor (2023) and the 2025 Article 143 opinion. **Analysis:** Previous sanction precedes the legislative step, reservation follows State passage, Article 201 governs Presidential consideration, and Article 254(2) changes the priority of a competent Concurrent-field State law within that State. **Qualification:** Assent cannot cure substantive incompetence; current law rejects fixed judicial timelines and deemed assent while allowing limited relief against prolonged, unexplained and indefinite inaction.

NAMED EVIDENCE

Articles 200, 201, 254(2), 255 and 304(b); *State of Punjab v. Principal Secretary to the Governor* (2023); 20 November 2025 Article 143 opinion.

PRELIMS TRAP

Previous Presidential sanction operates before the specified legislative step; reservation follows passage, and Presidential assent cannot cure a law outside State competence.

MAINS USE

Use for State-Bill delay, reservation, assent and Article 254(2) questions while keeping detailed Governor-office doctrine outside this topic.

MINI RECAP

Prior sanction, Governor action, Presidential consideration, repugnancy assent and procedural cure are separate stages.

SESSION 5 - FEDERAL SUPREMACY AND HARMONIOUS CONSTRUCTION

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Courts preserve both legislative fields where possible and use supremacy only for irreconcilable conflict.

Technical definition: Pith and substance, harmonious construction and Article 254 form a sequential competence-and-conflict inquiry.

VISUAL FIRST

TRUE CHARACTER -> LEGISLATIVE FIELD -> WORKABLE COEXISTENCE -> CONFLICT RULE

pith and substance	incidental encroachment	Article 254
territorial nexus	harmonious construction	Union priority
colourable legislation	delegated detail within power	assent exception

ORDER: COMPETENCE FIRST; REPUGNANCY ONLY FOR AN IRRECONCILABLE CONCURRENT-FIELD CONFLICT.

Core teaching

Doctrine	Test	Consequence
Pith and substance	What is the law's true nature and dominant character?	Incidental encroachment does not invalidate competence
Harmonious construction	Can both entries/laws receive meaningful operation?	Reconciliation is preferred
Federal supremacy	Does an irreconcilable constitutional priority remain?	Union predominance operates as tie-breaker
Repugnancy	Are Union and State laws on a Concurrent matter directly inconsistent?	Article 254 ordinarily gives Union law priority
Colourable legislation	Is competence being evaded by form?	Indirect transgression is invalid
Territorial nexus	Is there a real connection to the State?	Supports extra-territorial effect of State law

Article 254

- [FACT] A State law repugnant to parliamentary law on a Concurrent subject is void to the extent of repugnancy.
- [FACT] A reserved State law receiving Presidential assent may prevail in that State.
- [FACT] Parliament may later add to, amend, vary or repeal that State law.
- [LIMIT] Article 254 is not the first step in every List dispute. First identify competence and attempt harmonious construction.

2019 PYQ thesis: Harmonious construction is the ordinary preservation rule; federal supremacy is the exceptional last-resort rule. Sarkaria called supremacy a technique to avoid absurdity and resolve conflict.

Doctrine sequence: do not start with repugnancy

1. Identify the law's true nature (pith and substance)
2. Locate the competent legislative entry
3. Test whether any overlap is merely incidental/ancillary
4. Reconcile entries and provisions through harmonious construction
5. If two laws occupy a Concurrent field, test Article 254 repugnancy
6. Apply constitutional Union priority only to the irreconcilable residue

[FACT] **Territorial nexus** addresses the reach of a State law under Article 245, while **pith and substance** addresses its subject classification. **Colourable legislation** tests disguised lack of competence, not political motive.

[ANALYSIS] This sequence protects both levels of government before invoking Union predominance. It turns federal supremacy from a slogan into a constitutionally bounded conflict rule.

[LIMIT] Presidential assent under Article 254(2) cannot cure a State law enacted outside State competence, and Parliament may later override an assented State law.

Delegated legislation within legislative competence

- [FACT] A competent legislature may state the essential policy and leave working details to rules or regulations made under the parent Act.
- [LIMIT] Delegation cannot transfer the essential legislative choice, enlarge the parent statute or enable the executive to occupy a field unavailable to the delegating legislature.
- [ANALYSIS] Read with colourable legislation, the rule prevents constitutional List boundaries from being evaded through subordinate form.

Answer-writing evidence chain

- **Claim:** Indian legislative federalism prefers reconciliation before supremacy.
- **Named evidence:** Articles 245-246 allocate reach and fields; Article 254 resolves Concurrent repugnancy; *M. Karunanidhi* supplies the conflict inquiry.
- **Analysis:** Pith and substance and harmonious construction preserve workable regulatory overlap, while Article 254 prevents contradictory commands in the Concurrent field.
- **Qualification:** Federal supremacy is constitutionally authorised but should be used only after competence and reconciliation analysis, not as a presumption that every Union law displaces State law.

Cross-link: basic/Constitutional-Interpretation-Doctrines.md is the consolidated doctrine map; this package owns their Centre-State application.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Harmonious construction is the preservation rule; federal supremacy is the tie-breaker.

MUST-WRITE KEYWORDS

pith and substance; harmonious construction; Article 254; repugnancy; M. Karunanidhi; federal supremacy

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Indian legislative federalism reconciles fields before applying Union supremacy. **Named evidence:** Articles 245-246 and 254, *M. Karunanidhi* and *Hoechst Pharmaceuticals*. **Analysis:** Pith and substance identifies the law, incidental encroachment and harmonious construction preserve workable overlap, colourable-legislation and delegation limits prevent evasion, and Article 254 resolves only the irreconcilable Concurrent-field remainder.

Qualification: Article 254 is principally a Concurrent-field rule, and Article 254(2) gives neither missing competence nor immunity from a later parliamentary override.

NAMED EVIDENCE

Articles 245-246 and 254; *M. Karunanidhi v. Union of India* (1979); *Hoechst Pharmaceuticals v. State of Bihar* (1983).

PRELIMS TRAP

Article 254 principally addresses Concurrent-field repugnancy; incidental encroachment and overlap between different exclusive Lists require competence analysis instead.

MAINS USE

Use for the 2019 Federal Supremacy and Harmonious Construction PYQ and any legislative-overlap problem.

MINI RECAP

Identify substance and competence, preserve coexistence, and invoke Union priority only for the irreconcilable residue.

SESSION 6 - ADMINISTRATIVE RELATIONS: IMPLEMENTATION, DIRECTIONS AND CONSEQUENCE

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Administrative relations connect State implementation duties with bounded Union directions.

Technical definition: Articles 256-257 permit compliance and specified directions, while Article 365 supplies only a possible inference.

VISUAL FIRST

```
PARLIAMENTARY LAW / UNION EXECUTIVE POWER
|
+--> Article 256: State compliance + necessary directions
+--> Article 257: no impediment to Union power
      +--> national/military communications
      +--> railway protection
|
+--> COST ADJUSTMENT where Constitution requires
```

Core teaching

Articles 256 and 257

- [FACT] State executive power must ensure compliance with parliamentary laws and existing laws applying in the State.
- [FACT] Union executive power extends to giving necessary directions for that purpose.
- [FACT] State executive power must not impede Union executive power.
- [FACT] The Union may direct construction/maintenance of communications of national or military importance and measures for railway protection, with constitutionally governed extra costs.

Other direction fields

- [FACT] Article 339(2) permits Union directions concerning schemes essential for Scheduled Tribe welfare.
- [FACT] Article 350A concerns facilities for mother-tongue instruction at the primary stage for linguistic-minority children.

Article 365 is not automatic President's Rule

- [FACT] Failure to comply with Union directions permits the President to hold that a situation has arisen in which State government cannot be carried on according to the Constitution.
- [LIMIT] Article 365 creates a constitutionally relevant inference, not an automatic mechanical proclamation.
- [FACT] Any Article 356 action remains subject to parliamentary approval, temporal rules and *S.R. Bommai* judicial review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A direction is not the same as an automatic Article 356 proclamation.

MUST-WRITE KEYWORDS

Article 256; Article 257; Union directions; Article 365; railway protection; constitutional compliance

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Explain directions as constitutionally specified implementation tools, then show why Article 257 cost rules and Article 365 safeguards prevent a general command relationship. **Named evidence:** Articles 256-257, 339(2), 350A and 365. **Analysis:** Compliance and non-impediment duties permit directions tied to parliamentary law, communications, railway protection and specified welfare or language fields, while cost rules recognise burdens placed on States. **Qualification:** Article 365 supplies only possible material for a later constitutional conclusion; it neither administers every State subject nor automatically triggers Article 356.

NAMED EVIDENCE

Articles 256-257, 339(2), 350A and 365.

PRELIMS TRAP

Union directions are not a free-standing power to administer every State subject.

MAINS USE

Use for administrative-centralisation and cooperative-implementation answers.

MINI RECAP

Directions secure lawful implementation; they do not turn States into Union field offices.

SESSION 7 - DELEGATION, SERVICES AND AGENCIES

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Cooperative administration uses reciprocal entrustment, shared services and consent-based investigation.

Technical definition: Articles 258, 258A and 312 coexist with DSPE Act State-consent requirements and constitutional-court exceptions.

VISUAL FIRST

Mechanism	Direction	Consent / control
Article 258(1)	Union functions -> State/officers	State consent
Article 258(2)	Parliamentary law confers duties	Consent not always required; cost adjustment
Article 258A	State functions -> Union/officers	Union consent
Article 312	New All-India Service	Rajya Sabha two-thirds present and voting
DSPE Act section 6	CBI powers within a State	State consent, subject to constitutional-court orders

Core teaching

Mutual delegation

- [FACT] Article 258 permits the President, with State consent, to entrust Union executive functions to a State or its officers.
- [FACT] Parliamentary law may confer powers and impose duties on States even without consent, with adjustment for administrative costs.
- [FACT] Article 258A permits a Governor, with Union consent, to entrust State executive functions to the Union or its officers.

All-India Services: Article 312

- [FACT] IAS, IPS and Indian Forest Service are All-India Services.
- [FACT] Rajya Sabha must pass the prescribed national-interest resolution before Parliament creates a new All-India Service.
- [ANALYSIS] Shared cadres combine national standards and State implementation, but disciplinary control and cadre allocation can generate federal friction.
- [LIMIT] Indian Forest Service is not the Indian Foreign Service.

CBI consent

- [FACT] Section 6 of the Delhi Special Police Establishment Act requires State consent for DSPE/CBI powers within a State.
- [FACT] Withdrawal of general consent ordinarily makes case-specific consent necessary for fresh investigations.

- [FACT] Supreme Court and High Courts may order a CBI investigation through constitutional jurisdiction without State consent.
- [CURRENT] The 2024 *State of West Bengal v. Union of India* decision upheld maintainability of the State's Article 131 suit against preliminary objection; it did not finally decide all merits.

Articles 259 and 260

- [FACT] Article 259 stands omitted.
- [FACT] Article 260 permits the Government of India, by agreement with the government of a territory outside India, to undertake executive, legislative or judicial functions vested in that government, subject to any law relating to foreign jurisdiction.
- [LIMIT] Article 260 is an external-jurisdiction provision, not a general Union power to absorb State functions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Delegation, services and agencies work only when Union-State control and accountability remain genuinely joint.

MUST-WRITE KEYWORDS

Article 258; Article 258A; Article 312; All-India Services; CBI consent; DSPE Act

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Distinguish consensual entrustment, statutory imposition of duties, common cadres and investigative consent instead of grouping them as one central power. **Named evidence:** Articles 258, 258A, 260 and 312; All-India Services Act; DSPE Act section 6; *West Bengal v. Union* (2024). **Analysis:** Consensual entrustment, statutory duties, common cadres and State consent for ordinary CBI jurisdiction solve different coordination problems and therefore require distinct accountability controls. **Qualification:** Constitutional courts may order a CBI probe without State consent, and the 2024 West Bengal decision resolved preliminary maintainability rather than the merits.

NAMED EVIDENCE

Articles 258, 258A, 260 and 312; All-India Services Act; DSPE Act section 6; *West Bengal v. Union* (2024).

PRELIMS TRAP

Indian Forest Service is an All-India Service; Indian Foreign Service is a Central Civil Service.

MAINS USE

Use for CBI-consent, shared-administration and All-India Services questions.

MINI RECAP

Administrative integration is federal only when authority and accountability remain genuinely shared.

SESSION 8 - EMERGENCY-LINKED CENTRE-STATE CONSEQUENCES: ARTICLES 355-365

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 355-365 contain distinct duties, emergency consequences, immunities and special provisions.

Technical definition: The relation sequence is Union duty under 355, exceptional remedy under 356, temporary legislative consequence under 357 and possible non-compliance inference under 365.

VISUAL FIRST

ARTICLE 355 DUTY

protect State + ensure constitutional government

|
 +-- Article 365: non-compliance may be relevant material
 | (not automatic President's Rule)
 v

ARTICLE 356 REMEDY -> parliamentary control + judicial review

ARTICLE 357 EFFECT -> temporary exercise of State legislative power

Core teaching

Provision	Centre-State consequence	Exam-safe limit
Article 355	Union duty to protect every State against external aggression and internal disturbance and ensure constitutional government	A duty and constitutional context; not a self-executing takeover power
Article 356	Presidential proclamation where State government cannot be carried on according to the Constitution	Parliamentary approval, time limits and <i>S.R. Bommai</i> review apply
Article 357	Parliament may confer State legislative power on the President and authorise delegation during President's Rule	Does not permanently transfer the State List
Articles 358-359	Modify specified Fundamental-Rights operation/enforcement during a National Emergency	Primarily a rights effect, not a fresh allocation of legislative fields
Article 360	Permits financial-emergency directions, including State financial propriety and reservation of specified State Money Bills	Never proclaimed as of the control date; do not treat it as ordinary borrowing control
Articles 361-364	Immunities and limited transitional/special provisions	Not general Union direction powers
Article 365	Non-compliance with Union directions may support a conclusion relevant to Article 356	It is an evidentiary bridge, not automatic President's Rule

[ANALYSIS] The constitutional sequence is **duty (355) -> exceptional remedy (356) -> temporary legislative consequence (357)**. Article 365 may supply relevant material, but neither it nor Article 355 bypasses the safeguards governing Article 356. Article 360 is a separate fiscal-emergency route and must not be confused with ordinary Article 293 borrowing consent.

Major judicial controls across the relations map

Decision	Controlled proposition
<i>State of West Bengal v. Union of India</i> (1962)	States are not sovereign entities immune from constitutionally valid Union power
<i>State of Rajasthan v. Union of India</i> (1977)	Article 356 satisfaction is not wholly beyond review, though the earlier review standard was deferential
<i>M. Karunanidhi v. Union of India</i> (1979)	Repugnancy requires a real, direct and irreconcilable conflict in the Concurrent field
<i>S.R. Bommai v. Union of India</i> (1994)	Federalism is Basic Structure; Article 356 is reviewable and majority ordinarily belongs on the floor
<i>Jindal Stainless v. State of Haryana</i> (2016)	Part XIII does not promise tax-free trade; discriminatory State taxation is the central Article 304(a) concern
<i>Union of India v. Mohit Minerals</i> (2022)	GST Council recommendations are recommendatory and preserve legislative autonomy
<i>State of West Bengal v. Union of India</i> (2024)	The State's Article 131 CBI-consent suit survived the preliminary objection; merits were not finally decided

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Emergency-linked Centre-State consequences under Articles 355-365 separate Union duty, exceptional remedy and fiscal emergency.

MUST-WRITE KEYWORDS

Article 355; Article 356; Article 357; Article 360; Article 365; S.R. Bommai

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Present Article 355 as duty, Article 365 as possible evidentiary inference, Article 356 as exceptional remedy and Article 357 as its legislative consequence. **Named evidence:** Articles 355-357 and 365; *S.R. Bommai v. Union of India* (1994). **Analysis:** Article 355 states the Union duty, Article 365 may make non-compliance relevant, Article 356 supplies the separately controlled proclamation, and Article 357 explains its legislative consequence. **Qualification:** Neither duty nor inference bypasses parliamentary control and Bommai review; detailed proclamation duration and rights effects remain in Topic 14.

NAMED EVIDENCE

Articles 355-357 and 365; *S.R. Bommai v. Union of India* (1994).

PRELIMS TRAP

Neither Article 355 nor Article 365 automatically authorises President's Rule.

MAINS USE

Use only the Centre-State consequence here; reserve detailed emergency triggers and duration for Topic 14.

MINI RECAP

A duty, an inference, a proclamation and its consequence are four different constitutional steps.

SESSION 9 - FINANCIAL RELATIONS: CONSTITUTIONAL ARCHITECTURE

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Fiscal relations allocate taxing authority, revenue, grants, immunities and borrowing constraints.

Technical definition: Articles 265, 268-280 and 292-293 create a system of assignment, distribution, grants and consent.

VISUAL FIRST

Fiscal layer	Core Articles	Function
Public funds	266-267	Consolidated and Contingency Funds
Assignment/apportionment	268, 269, 269A, 270	Who collects, keeps or shares
Non-shareable levy	271	Union surcharge; GST excluded from this power
Grants/procedure	273-275, 280-282	Historical grant, Bill recommendation, grants, FC and public-purpose grants
Other controls	276, 279, 285-289, 292-293	Profession tax, net proceeds, immunities and borrowing

Core teaching

Foundational rules

- [FACT] Article 265: no tax shall be levied or collected except by authority of law.
- [FACT] The Concurrent List has no general tax entry; GST shared competence arises specially from Article 246A.
- [FACT] Article 276 permits taxes on professions, trades, callings and employments subject to the constitutional annual cap of Rs 2,500 per person.

Revenue-distribution map

Article	Mechanism	Exam distinction
268	Union levies; States collect and appropriate specified stamp duties	Not part of ordinary divisible-pool devolution
269	Union levies/collects and assigns specified inter-State taxes to States	Distinguish from IGST
269A	Union levies/collects inter-State GST and apportions it	GST Council framework
270	Union taxes distributed between Union and States	Divisible pool and FC shares
271	Parliament may impose Union-purpose surcharge	Surcharge proceeds are not shared
275	Grants-in-aid under constitutional criteria	Rules-based/statutory grants
282	Union or State grants for any public purpose	Discretionary policy leverage
280	Finance Commission	Periodic devolution and grants

Tax immunities and borrowing

- [FACT] Article 285 generally exempts Union property from State taxation, subject to parliamentary provision and transitional rules.
- [FACT] Article 289 generally exempts State property and income from Union taxation, subject to business/trade exceptions Parliament may regulate.
- [FACT] Article 292 governs Union borrowing; Article 293 limits State borrowing to within India.
- [FACT] A State requires Union consent to raise a loan where a Union loan or guaranteed loan remains outstanding, and consent may carry conditions.

Completing Articles 266-282

- [FACT] Under Article 266, Union revenues, Union borrowings and loan recoveries form the Consolidated Fund of India; corresponding State receipts form each State's Consolidated Fund. Appropriation requires law.
- [FACT] Article 267 permits Parliament and State legislatures to establish Contingency Funds placed at the disposal of the President or Governor for advances pending legislative authorisation.
- [FACT] Article 272 has been omitted. Article 273's jute-export-duty grants were a temporary historical arrangement for the first ten years after commencement.

- [FACT] Article 274 requires the President's recommendation for specified taxation Bills affecting matters in which States are interested or varying agricultural-income meaning for Union enactments.
- [FACT] Article 276 permits State/local taxes on professions, trades, callings and employments, subject to the constitutional ceiling of Rs 2,500 per person per year.
- [FACT] Article 279 governs calculation of net proceeds, whose certification by the Comptroller and Auditor General is final. Article 281 requires the President to lay the Finance Commission recommendations and an explanatory memorandum before Parliament.
- [FACT] Articles 285 and 289 create qualified reciprocal tax immunities for Union and State property/income; neither is an unlimited exemption for commercial activity.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The constitutional architecture of financial relations gives State autonomy practical meaning through usable revenue.

MUST-WRITE KEYWORDS

Article 265; Article 270; Article 271; Article 275; Article 280; Article 293

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Map revenue into the Consolidated Funds, then separate assigned taxes, apportionment, divisible-pool distribution, non-shareable levies and grants. **Named evidence:** Articles 266, 268-281, 282 and 285-289; Eightieth and One Hundred and First Amendments. **Analysis:** Separate Consolidated Funds preserve accountability, Articles 268-270 and 269A allocate revenue flows, Article 271 removes surcharges from sharing, and Articles 275, 280-281 and 282 create different grant channels. **Qualification:** A devolution percentage applies to the divisible pool rather than gross Union tax revenue, and an Article 282 public-purpose grant is not an Article 275 grant.

NAMED EVIDENCE

Articles 266, 268-281, 282 and 285-289; Eightieth and One Hundred and First Amendments.

PRELIMS TRAP

Article 271 surcharges and specific-purpose cesses are outside the divisible pool; Article 270's percentage does not apply to gross Union tax revenue.

MAINS USE

Use as the constitutional base for every fiscal-federalism answer.

MINI RECAP

Tax power, collection, retention, sharing and appropriation are distinct fiscal questions.

SESSION 10 - EVOLUTION OF FISCAL FEDERALISM

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Fiscal federalism moved from parallel plan and Finance Commission channels toward a Finance Commission-GST-NITI architecture.

Technical definition: The post-2015 system is more rules-based but retains cesses, conditional schemes and borrowing leverage.

VISUAL FIRST

VERTICAL IMBALANCE = mismatch between Union and State revenue/power

HORIZONTAL IMBALANCE = unequal capacity and need among States

PLAN-ERA DISCRETION -> 14TH FC / NITI -> GST -> 15TH / 16TH FC

TEST THE WHOLE SYSTEM: divisible-pool base + grants + schemes + mandates

Core teaching

Planned-development era

- Planning Commission and National Development Council shaped plan assistance outside the Finance Commission's constitutional cycle.
- Article 282 grants enabled national development priorities but increased executive discretion.
- States negotiated plan size and scheme assistance through a centralised planning structure.

Post-2015 architecture

- [FACT] NITI Aayog replaced the Planning Commission through executive resolution in 2015; it has no tax-devolution power.
- [FACT] The 14th Finance Commission raised vertical devolution to 42%, increasing untied tax share while scheme restructuring changed the wider transfer picture.
- [FACT] GST pooled major indirect-tax autonomy through Articles 246A, 269A and 279A.
- [FACT] The 15th and 16th Finance Commissions use 41%, accounting for the changed status of Jammu and Kashmir in the divisible-pool calculation.

Assessment

- [ANALYSIS] The system became more rules-based through Finance Commission devolution and a constitutional GST forum.
- [ANALYSIS] Re-centralisation persists through cesses/surcharges outside the divisible pool, centrally sponsored scheme conditions, borrowing consent and unequal administrative capacity.
- [LIMIT] "More devolution" cannot be assessed from the percentage alone; the divisible-pool base, grants and expenditure mandates matter.

Dated Sixteenth Finance Commission control

- [CURRENT] The official Explanatory Memorandum dated February 2026 records that the Sixteenth Finance Commission submitted its report on 17 November 2025 for 2026-27 to 2030-31, commencing 1 April 2026.
- [CURRENT] The Government accepted retention of the States' vertical share at 41 percent of the net proceeds, or divisible pool, of Union taxes.
- [CURRENT] The accepted horizontal criteria are population, demographic performance, area, forest, per-capita-income distance and contribution of the State to GDP. Table 8.8 gives weights of 17.5, 10, 10, 10, 42.5 and 10 percent respectively.
- [CURRENT] The Commission did not recommend revenue-deficit, sector-specific or State-specific grants; the Explanatory Memorandum separately records local-body and disaster-management grants.
- [LIMIT] These are dated official recommendations and accepted action for the award period, not permanent constitutional percentages.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The evolution of fiscal federalism cannot be measured by a devolution percentage alone.

MUST-WRITE KEYWORDS

Planning Commission; NITI Aayog; Finance Commission; divisible pool; cesses and surcharges; vertical imbalance

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Trace plan-era discretion, Finance Commission devolution, NITI Aayog and GST, then evaluate both the percentage and the tax base to which it applies. **Named evidence:** Articles 280-281; Fourteenth, Fifteenth and Sixteenth Finance Commissions; official 16FC Explanatory Memorandum, February 2026. **Analysis:** Rules-based devolution increased predictability and GST institutionalised joint tax bargaining, while NITI replaced the Planning Commission without inheriting constitutional transfer power. **Qualification:** Cesses, conditional schemes, unequal revenue capacity and borrowing controls mean that a higher formal share does not by itself establish greater effective autonomy.

NAMED EVIDENCE

Articles 280-281; Fourteenth, Fifteenth and Sixteenth Finance Commissions; official 16FC Explanatory Memorandum, February 2026.

PRELIMS TRAP

Horizontal criteria divide the States' share among States; they do not alter the vertical percentage.

MAINS USE

Use for the 2025 fiscal-federalism PYQ and debates on equalisation versus contribution.

MINI RECAP

Rules-based transfers improved predictability, but effective autonomy depends on the base, grants and expenditure duties.

SESSION 11 - SIXTEENTH FINANCE COMMISSION: ACCEPTED 2026-31 CONTROL

Stage: Core

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Sixteenth Finance Commission supplies the accepted award-period framework for tax devolution and major grants for 2026-31.

Technical definition: Its accepted framework retains 41 percent vertical devolution and balances equalisation, demography, ecology, area and GDP contribution.

VISUAL FIRST

SIXTEENTH FINANCE COMMISSION | AWARD PERIOD 2026-27 TO 2030-31

```
|
+-- VERTICAL DEVOLUTION -> States: 41% of the divisible pool
|
+-- HORIZONTAL DISTRIBUTION OF THAT STATE SHARE
|   income distance 42.5 | population 17.5
|   demographic performance 10 | area 10
|   forest and ecology 10 | contribution to GDP 10
|
+-- GRANTS -> local-body and disaster channels retained
    revenue-deficit / sector-specific / State-specific not recommended
```

TRAP: VERTICAL SHARE, HORIZONTAL FORMULA AND GRANTS ANSWER THREE DIFFERENT QUESTIONS.

Core teaching

Criterion	Weight
Income distance	42.5%
Population (2011)	17.5%
Demographic performance	10%
Area	10%
Forest and ecology	10%
Contribution to GDP	10%

- [CURRENT] Vertical devolution remains **41% of the divisible pool** for 2026-31.
- [CURRENT] Contribution to GDP is a new 10% criterion; tax effort was removed.
- [CURRENT] Revenue-deficit, sector-specific and State-specific grants were discontinued in the accepted framework; local-body and disaster grants remain major grant channels.
- [CURRENT] Disaster-fund sharing is 90:10 for specified north-eastern/Himalayan States and 75:25 for other States.
- [ANALYSIS] The formula balances equalisation and contribution, but every criterion creates distributional winners and losers; legitimacy depends on transparent methodology.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Sixteenth Finance Commission formula for 2026-31 distributes a fixed vertical share through explicit horizontal trade-offs.

MUST-WRITE KEYWORDS

Sixteenth Finance Commission; 41 percent; income distance; demographic performance; forest and ecology; contribution to GDP

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: The Sixteenth Finance Commission separates the size of the States' collective share from its distribution among States and from grant design. **Named evidence:** Articles 280-281 and the official February 2026 Explanatory Memorandum for the 2026-31 award. **Analysis:** Vertical devolution fixes 41 percent of the divisible pool for States, the six weighted criteria distribute that share horizontally, and the grant recommendations address expenditure channels outside that formula. **Qualification:** The 41 percent and criterion weights are award-period choices, not permanent constitutional commands; each criterion embodies a contestable equity trade-off.

NAMED EVIDENCE

Articles 280-281; Sixteenth Finance Commission report submitted 17 November 2025; official Explanatory Memorandum dated February 2026.

PRELIMS TRAP

The 41 percent vertical share and the horizontal criterion weights perform different functions and apply only to the 2026-31 award period.

MAINS USE

Use as dated evidence in fiscal-federalism answers after explaining the vertical-horizontal distinction.

MINI RECAP

Forty-one percent fixes the States' collective pool share; the weighted formula divides it among States; grants remain a third channel.

SESSION 12 - GST COUNCIL, STATE BORROWING AND FISCAL AUTONOMY

Stage: Core

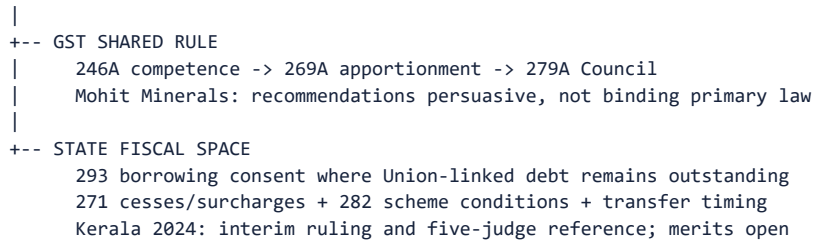
DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Fiscal autonomy is negotiated through shared GST decisions, State borrowing space and the conditions attached to other Union fiscal levers.

Technical definition: Articles 246A, 269A and 279A structure GST bargaining, while Articles 271, 282 and 293 shape the divisible-pool boundary, conditional spending and State borrowing consent.

VISUAL FIRST

FISCAL AUTONOMY OPERATES THROUGH TWO DIFFERENT BARGAINS



BALANCE: HARMONISED TAXATION AND MACRO-FISCAL STABILITY WITHOUT ERASING STATE CHOICE.

Core teaching

- [FACT] Article 279A creates a joint Union-State forum on GST rates, exemptions, thresholds, model laws and special rates.
- [FACT] The Union's vote has one-third weight and States together two-thirds; a decision requires at least three-fourths weighted votes of members present and voting.
- [FACT] *Union of India v. Mohit Minerals* (2022) held Council recommendations recommendatory, not binding law.
- [ANALYSIS] Consensus remains politically valuable because divergent GST laws can fragment the common market even where legal autonomy exists.
- [LIMIT] GST Council recommendations are neither judicial orders nor constitutional amendments.

Other fiscal-autonomy levers

- [FACT] Article 271 surcharges and specific-purpose parliamentary cesses lie outside the Article 270 divisible pool, reducing the base to which a devolution percentage applies.
- [FACT] Article 282 permits Union or State grants for any public purpose; centrally sponsored scheme design and matching-share conditions can therefore influence State expenditure priorities.
- [ANALYSIS] Predictable transfer calendars, transparent CAG-certified net-proceeds data and flexible scheme components reduce avoidable bargaining distrust.

Article 293 and the current litigation boundary

- [FACT] A State borrows only within India, on the security of its Consolidated Fund, within any limits fixed by State law.
- [FACT] Union consent is required where a Union loan to the State, or a Union-guaranteed loan, remains outstanding; Article 293(4) permits conditions.
- [CURRENT] In *State of Kerala v. Union of India*, 2024 INSC 253, the Supreme Court declined interim relief and referred substantial Article 293 questions to a five-judge Bench. The order expressly confined its observations to interim relief.
- [LIMIT] No later official final merits judgment was located in the checked Supreme Court material through 7 September 2026; therefore the contested scope of Union borrowing control is not stated as finally settled.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

GST and Article 293 convert fiscal autonomy into structured bargaining: harmonisation and stability require cooperation, but neither authorises unreasoned extinction of State choice.

MUST-WRITE KEYWORDS

Articles 246A, 269A and 279A; weighted voting; Mohit Minerals; Article 293; divisible pool; Kerala borrowing case

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Contemporary fiscal federalism combines negotiated GST harmonisation with bounded Union influence over State borrowing and spending. **Named evidence:** Articles 246A, 269A, 271, 279A, 282 and 293, *Mohit Minerals* and *State of Kerala v. Union of India* (2024). **Analysis:** The GST Council coordinates simultaneous legislative power, while the divisible-pool boundary, scheme conditions and Article 293 consent affect the usable fiscal space through which States discharge their responsibilities. **Qualification:** Council recommendations do not bind primary legislation, Article 293 is not a Financial Emergency power, and the Kerala order referred questions without settling the merits.

NAMED EVIDENCE

Articles 246A, 269A, 271, 279A, 282 and 293; *Union of India v. Mohit Minerals* (2022); *State of Kerala v. Union of India*, 2024 INSC 253.

PRELIMS TRAP

GST recommendations are not binding primary law, and ordinary Article 293 borrowing consent must not be confused with Article 360 Financial Emergency.

MAINS USE

Use to evaluate fiscal autonomy through GST bargaining, the divisible-pool boundary, centrally sponsored schemes and State borrowing conditions.

MINI RECAP

GST coordinates shared taxation; Article 293 conditions a defined borrowing situation; cesses and schemes shape the remaining fiscal space.

SESSION 13 - INTER-STATE WATER DISPUTES: ARTICLE 262

Stage: Synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Inter-State river disputes use a special statutory adjudication route because basins cross political boundaries.

Technical definition: Article 262 authorises parliamentary adjudication and jurisdiction exclusion; the 1956 Act retains dispute-specific tribunals.

VISUAL FIRST

NEGOTIATION / TECHNICAL DATA

RIVER BOARDS ACT: advisory development mechanism

ARTICLE 262 + 1956 DISPUTES ACT: tribunal adjudication

SECTION 11: statutory court-jurisdiction bar for covered water dispute

IMPLEMENTATION: notified decision + institutions + continuing cooperation

Core teaching

- [FACT] Article 262 permits Parliament to provide adjudication of inter-State river-water disputes and exclude Supreme Court and other court jurisdiction over such disputes.
- [FACT] Parliament enacted the River Boards Act, 1956 and Inter-State River Water Disputes Act, 1956.
- [FACT] The existing Act uses dispute-specific tribunals; awards become final and binding under the statutory scheme after publication.
- [CURRENT] The 2019 Amendment Bill proposed a dispute-resolution committee and a permanent tribunal with benches. It passed Lok Sabha, **lapsed with dissolution of the Seventeenth Lok Sabha**, and is not law. Official departmental material later described a revised proposal; it too must not be presented as enacted law.
- [LIMIT] Do not describe a permanent tribunal as current law.

Structural weaknesses and reform

Weakness	Consequence	Reform direction
Delayed tribunal constitution and adjudication	Conflict hardens politically	Firm statutory stages and staffed benches
Data disagreement	Competing hydrological narratives	Independent shared basin data
Implementation conflict	Award does not end politics	Basin institutions and compliance monitoring
Climate variability	Historical flows become unstable	Adaptive review and ecological-flow planning
Jurisdiction exclusion	Limited ordinary judicial route	Precise statutory review/implementation design

Article 131 and water-dispute jurisdiction

- [FACT] Article 131 gives the Supreme Court exclusive original jurisdiction in a dispute between the Union and one or more States, or between States, only when the existence or extent of a legal right is involved.
- [FACT] Its proviso preserves specified exclusions for certain pre-Constitution treaties, agreements, covenants, engagements, sanads or similar instruments.
- [FACT] Article 262 authorises Parliament both to create water-dispute adjudication and to exclude Supreme Court and other-court jurisdiction. Section 11 of the 1956 Act supplies that statutory bar for a water dispute which may be referred under the Act.
- [ANALYSIS] Article 131 adjudication and Article 262 tribunals are therefore complementary but not interchangeable. Negotiation through councils or basin institutions can continue even when adjudication is available.
- [CURRENT] The 2019 Amendment Bill proposing a single permanent tribunal passed Lok Sabha but did not become law; the dispute-specific statutory framework remains controlling. Current tribunal status should be checked dispute by dispute rather than reduced to an uncertain total.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

An award needs data, implementation and basin cooperation, not adjudication alone.

MUST-WRITE KEYWORDS

Article 262; ISRWD Act 1956; River Boards Act 1956; tribunal; jurisdiction exclusion; basin governance

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Separate negotiation, basin data, River Boards advice, tribunal adjudication, statutory jurisdiction exclusion and post-award implementation. **Named evidence:** Articles 131 and 262; River Boards Act, 1956; Inter-State River Water Disputes Act, 1956, especially sections 4-6 and 11. **Analysis:** Basin data and negotiation may narrow the dispute, the tribunal determines the covered water claim, section 11 channels jurisdiction, and management institutions must translate the notified decision into implementation. **Qualification:** Article 131 remains available only for qualifying legal-right disputes subject to exclusions; the 2019 permanent-tribunal Bill did not become law.

NAMED EVIDENCE

Articles 131 and 262; River Boards Act, 1956; Inter-State River Water Disputes Act, 1956, especially sections 4-6 and 11.

PRELIMS TRAP

The 2019 single-permanent-tribunal Bill did not become law; do not teach the proposal as the operative framework.

MAINS USE

Use for river-dispute delay, institutional design and adjudication-versus-negotiation answers.

MINI RECAP

An award settles a legal allocation only when data, notification, institutions and political cooperation carry it into practice.

SESSION 14 - INTER-STATE COUNCIL AND ZONAL COUNCILS

Stage: Synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Inter-State Council and Zonal Councils are intergovernmental forums with different constitutional and statutory foundations.

Technical definition: Article 263 enables the Inter-State Council; the States Reorganisation Act creates five Zonal Councils; the NEC has a separate statute.

VISUAL FIRST

Forum	Legal source	Output
Supreme Court, Article 131	Constitution	Binding adjudication of qualifying legal-right disputes
Inter-State Council	Article 263 + 1990 Presidential Order	Inquiry, discussion and advice
Five Zonal Councils	States Reorganisation Act, 1956	Regional recommendations
North Eastern Council	NEC Act, 1971	North-East regional planning/coordination
Article 261	Constitution	Recognition/proof/effect; civil judgment execution

Core teaching

Inter-State Council

- [FACT] Article 263 authorises the President to establish a Council if public interest would be served.
- [FACT] The Council may inquire into and advise on disputes, investigate common-interest subjects and recommend coordination.
- [FACT] It was established by presidential order in 1990 following Sarkaria Commission recommendation.
- [FACT] It is advisory; unlike an Article 131 judgment, its recommendations are not binding.

- [CURRENT] Full Council meetings remain infrequent; recent visible activity is stronger in Zonal Councils and their standing committees.

Zonal Councils and NEC

Body	Legal status	Chair / character
Five Zonal Councils	Statutory, States Reorganisation Act 1956	Union Home Minister; advisory and regional
North Eastern Council	Statutory, NEC Act 1971	Separate institution, not a sixth Zonal Council
NITI Aayog	Executive resolution	PM-chaired national policy forum
National Security Council	Executive/non-statutory	Security advisory architecture

- [ANALYSIS] The design gap is not absence of forums but irregular escalation from regional problem-solving to national intergovernmental settlement.

Dated institutional status

- [CURRENT] The Inter-State Council was established by Presidential Order on 28 May 1990 following the Sarkaria recommendation. The official Secretariat page records reconstitution on 8 November 2024.
- [CURRENT] The official meeting record lists the eleventh full Council meeting on 16 July 2016 as the latest full meeting. This supports an institutional-under-use argument; it does not mean intergovernmental consultation ceased, because Standing Committee and Zonal Council processes are distinct.
- [FACT] Five Zonal Councils operate under Part III of the States Reorganisation Act, 1956 and are chaired by the Union Home Minister. The North Eastern Council is a separate statutory body under the 1971 Act.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legal status determines mandate, not whether a body is commonly called a council.

MUST-WRITE KEYWORDS

Article 263; Inter-State Council; Zonal Councils; States Reorganisation Act 1956; North Eastern Council; consultation

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Classify each forum by constitutional, statutory or executive source and by whether its output is binding adjudication or advice. **Named evidence:** Articles 131, 261 and 263; 1990 Presidential Order; States Reorganisation Act, 1956; NEC Act, 1971. **Analysis:** Article 131 produces binding adjudication, the ISC gives national advice, Zonal Councils address regional coordination, the NEC has a separate mandate, and Article 261 supplies legal continuity. **Qualification:** Advisory recommendations do not bind like judgments, and infrequent full ISC meetings show under-use rather than absence of Standing Committee or Zonal consultation.

NAMED EVIDENCE

Articles 131, 261 and 263; 1990 Presidential Order; States Reorganisation Act, 1956; NEC Act, 1971.

PRELIMS TRAP

Zonal Councils are statutory, the NEC is separate, and the Article 263 text does not itself constitute a permanently sitting court.

MAINS USE

Use for institutional-status Prelims questions and reform answers on under-used consultation.

MINI RECAP

Legal status determines mandate: court decides, council advises, and recognition enables cross-border legal continuity.

SESSION 15 - FULL FAITH AND CREDIT: ARTICLE 261

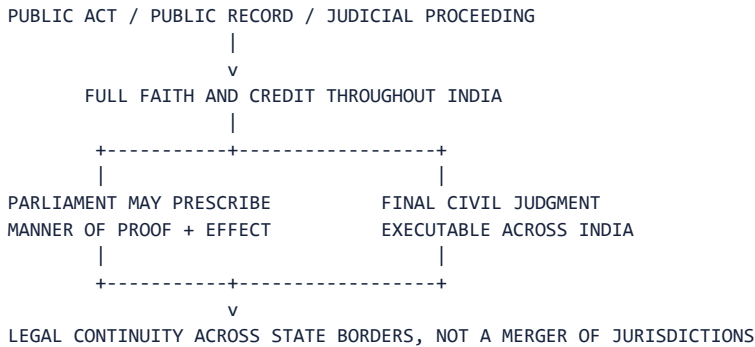
Stage: Synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 261 supports legal unity by requiring nationwide recognition of public acts, records and judicial proceedings.

Technical definition: Parliament may prescribe proof and effect, while civil judgments are executable across India according to law.

VISUAL FIRST



Core teaching

- [FACT] Public acts, records and judicial proceedings of the Union and every State receive full faith and credit throughout India.
- [FACT] Parliament may prescribe the manner of proof and effect.
- [FACT] Final judgments or orders delivered or passed by civil courts in any part of India are capable of execution anywhere according to law.
- [LIMIT] Clause (3) specifically concerns civil judgments; do not convert it into a claim that every criminal or penal rule has extra-territorial operation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Full faith and credit under Article 261 preserves recognition across State borders without merging jurisdictions.

MUST-WRITE KEYWORDS

Article 261; full faith and credit; public acts; public records; judicial proceedings; civil judgments

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 261 creates cross-border legal recognition without dissolving territorial jurisdiction. **Named evidence:** Article 261(1)-(3) and parliamentary power to regulate proof and effect. **Analysis:** Public acts, records and judicial proceedings receive full faith and credit, while parliamentary proof-and-effect rules and clause (3) enable reliable use and execution of final civil judgments across India. **Qualification:** The civil-execution clause does not nationalise every State penal law or give all criminal judgments automatic extra-territorial operation.

NAMED EVIDENCE

Article 261(1)-(3); parliamentary power over proof and effect; nationwide execution of final civil judgments according to law.

PRELIMS TRAP

Article 261(3) concerns final civil judgments and orders; it does not require one State to enforce every penal law of another.

MAINS USE

Use to show how constitutional legal unity supports inter-State mobility and transactions without merging State jurisdictions.

MINI RECAP

Recognition is nationwide, proof and effect may be regulated by Parliament, and civil execution crosses State borders according to law.

SESSION 16 - FREEDOM OF TRADE, COMMERCE AND INTERCOURSE

Stage: Advanced synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Freedom of trade, commerce and intercourse under Part XIII creates an integrated market with bounded regulation and taxation.

Technical definition: Articles 301-304 prohibit protectionist discrimination, not every tax or public-interest restriction.

VISUAL FIRST

ARTICLE 301: TRADE, COMMERCE AND INTERCOURSE THROUGHOUT INDIA SHALL BE FREE

- |
- 302 -> Parliament: public-interest restrictions
- 303 -> no preference; Parliament's scarcity exception
- 304(a) -> State tax must not discriminate against imported goods
- 304(b) -> reasonable State restriction + previous Presidential sanction
- 305 -> saving / State-monopoly boundary
- 307 -> Parliament may create an implementing authority

JINDAL STAINLESS (2016): NO GENERAL TAX IMMUNITY; TEST DISCRIMINATION.

Core teaching

Article	Rule
301	Trade, commerce and intercourse throughout India shall be free
302	Parliament may impose public-interest restrictions
303(1)	Parliament and States generally cannot prefer one State over another
303(2)	Parliament may depart to address scarcity of goods
304(a)	State tax on imported goods must not discriminate against them vis-a-vis similar local goods
304(b)	State may impose reasonable public-interest restrictions with previous presidential sanction
307	Parliament may appoint an implementing authority

Judicial evolution

- *Atiabari Tea* (1961) focused on direct and immediate restrictions.
- *Automobile Transport* (1962) developed a regulatory/compensatory approach.
- [FACT] *Jindal Stainless* (2016, nine judges) rejected the compensatory-tax doctrine as lacking textual foundation.
- [FACT] Article 301 does not create a tax-free market; the central tax question is hostile or protectionist discrimination under Article 304(a).
- [FACT] Article 304(a) and 304(b) operate distinctly; public-interest restriction cannot cure a discriminatory tax.
- [ANALYSIS] GST supplied fiscal integration that Part XIII litigation alone could not administratively achieve.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Freedom of trade, commerce and intercourse secures economic unity through non-discrimination, not tax immunity.

MUST-WRITE KEYWORDS

Article 301; Article 302; Article 303; Article 304(a); Article 304(b); Jindal Stainless

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Part XIII protects an integrated market through non-discrimination and bounded public-interest regulation rather than tax immunity. **Named evidence:** Articles 301-307, *Atiabari Tea*, *Automobile Transport* and *Jindal Stainless* (2016). **Analysis:** Article 301 states the freedom, Articles 302-303 control restrictions and preferences, and Article 304 separately tests equal taxation and sanctioned reasonable restrictions; *Jindal* displaced the compensatory-tax test. **Qualification:** A non-discriminatory tax is not invalid merely because it burdens trade, and public interest under Article 304(b) cannot cure discrimination under Article 304(a).

NAMED EVIDENCE

Articles 301-307; *Atiabari Tea* (1961); *Automobile Transport* (1962); *Jindal Stainless v. State of Haryana* (2016).

PRELIMS TRAP

Article 304(a) governs discriminatory State taxation; Article 304(b) governs reasonable public-interest restrictions with previous Presidential sanction.

MAINS USE

Use as the economic-federalism and common-market boundary, especially when linking Part XIII with GST integration.

MINI RECAP

Part XIII restrains protectionism, not every tax: competence, discrimination, public interest and procedure must be tested separately.

SESSION 17 - MINOR MINERALS: UNION NOTIFICATION, STATE RULE-MAKING

Stage: Advanced synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Minor-mineral regulation divides category control and concession rule-making between Union law and States.

Technical definition: The MMDR Act lets the Centre notify minor minerals while Section 15 empowers States to regulate concessions.

VISUAL FIRST

Statutory layer	Competent authority	Close-option distinction
MMDR Act section 3(e)	Central Government	May notify a mineral as a minor mineral
MMDR Act section 15	State Governments	Make rules for minor-mineral concessions
Constitutional Lists	Parliament/States	Competence must be traced through the statutory declaration and subject entries

Core teaching

- [FACT] The Mines and Minerals (Development and Regulation) Act, 1957 is parliamentary legislation under Union control over mineral regulation to the declared extent.
- [FACT] Section 3(e) empowers the Central Government to notify additional minerals as "minor minerals."
- [FACT] Section 15 empowers State Governments to make rules regulating quarry leases, mining leases and other concessions for minor minerals.
- [LIMIT] Central power to define/notify the category does not eliminate State rule-making for concessions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Central classification power does not erase State rule-making authority.

MUST-WRITE KEYWORDS

MMDR Act; minor minerals; Section 3(e); Section 15; Central notification

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Trace the statutory division: the Centre may notify the category, while State Governments make concession rules under the parliamentary framework. **Named evidence:** Mines and Minerals (Development and Regulation) Act, 1957, sections 3(e) and 15. **Analysis:** Parliament supplies the statutory framework, the Central Government may notify the category, and State Governments make concession rules for quarrying and extraction within that framework. **Qualification:** State rule-making remains bounded by the parent Act; Central classification does not transfer every concession decision to the Union.

NAMED EVIDENCE

Mines and Minerals (Development and Regulation) Act, 1957, sections 3(e) and 15.

PRELIMS TRAP

Central classification of minor minerals does not extinguish State rule-making over concessions.

MAINS USE

Use for the exact 2025 Prelims close-option question and layered-regulation examples.

MINI RECAP

A Union statute can distribute functions between levels rather than monopolise every decision.

SESSION 18 - COMMISSIONS ON CENTRE-STATE RELATIONS

Stage: Advanced synthesis

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Rajamannar, Sarkaria and Punchhi offer different diagnoses of Union-State imbalance and cooperation.

Technical definition: Centre-State relations commissions provide reform recommendations that require constitutional, statutory or executive adoption before acquiring legal force.

VISUAL FIRST

Review stage	Central concern	State-autonomy safeguard
First ARC, 1966-69	Coordination and administrative capacity	ISC, delegation and more State resources
Rajamannar, 1969-71	Excessive centralisation	Far-reaching transfer of powers to States
Sarkaria, 1983-88	Strong Union without over-centralisation	Last-resort Article 356, consultation and ISC
Punchhi, 2007-10	New governance and security pressures	Reasoned Governor norms, stronger councils and fiscal consultation

Core teaching

Body	Orientation	High-yield recommendations
Rajamannar Committee (1969)	Strong State autonomy	Curtail Union power, strengthen ISC, review Articles 356-357
Sarkaria Commission (1983-88)	Cooperative federalism within a strong Union	Article 356 last resort; neutral Governors; consult States on Concurrent laws; permanent ISC
Punchhi Commission (2007-10)	Modernise intergovernmental machinery	Governor norms, stronger ISC, localised emergency concept, clearer consultation

Commission and evolution timeline

Stage	Contribution	Legal-status firewall
First ARC, 1966-69	Recommended an Article 263 council, non-partisan Governors, greater delegation and more State resources	Recommendations only
Rajamannar Committee, 1969-71	Diagnosed constitutional, fiscal and planning centralisation; proposed extensive State autonomy	State-appointed committee; proposals not adopted as constitutional law
Sarkaria Commission, 1983-88	Favoured a strong Union without over-centralisation; Article 356 last resort; consultation on Concurrent laws; permanent ISC	Recommendations guide reform; 1990 ISC was separately established
Inter-State Council, 1990	Institutionalised national intergovernmental consultation	Advisory, not a legislature or court
Punchhi Commission, 2007-10	Updated Governor, Article 355/356, council, fiscal and inter-State reform proposals	Recommendations, including localised emergency, are not operative law by themselves
Post-2015 fiscal stage	NITI, GST and later Finance Commissions changed bargaining channels	Institutions have different constitutional/executive sources

Challenge-to-reform matrix

Challenge	Balanced reform
Governor/assent friction	Prompt action, recorded reasons, constitutional neutrality and relation-level judicial limits
Broad directions or agency conflict	Clear statutory basis, consultation, oversight and transparent consent protocols
Cesses, transfer delay and rigid schemes	Publish CAG-certified net proceeds, stabilise releases, review cesses and permit State-flexible scheme design
GST bargaining stress	Reasoned deliberation, timely data and a credible Article 279A dispute mechanism
Borrowing conflict	Objective fiscal-risk criteria, reasons, disclosure and adjudication of unresolved Article 293 boundaries
River disputes	Shared basin data, early negotiation, timely adjudication and enforceable implementation
Under-used ISC	Regular agenda-led meetings with public follow-up, while retaining Zonal Councils for regional operations

Trust-building reform stack

1. Convene the Inter-State Council regularly with published follow-up.
2. Consult States before major Concurrent-field legislation.
3. Use Governors as neutral constitutional heads, with reasoned and prompt decisions.
4. Protect predictable tax devolution and improve transparency of cesses/surcharges.
5. Make centrally sponsored schemes flexible and jointly designed.
6. Strengthen GST dispute resolution and preserve consensus practice.
7. Create shared river-basin data and enforceable implementation institutions.
8. Clarify CBI accountability and consent protocols by statute.

Core verdict: Trust is not goodwill. It is the repeated institutional experience that consultation occurs before compulsion, reasons accompany discretion, and agreed fiscal rules are honoured.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Commission proposals are marks-worthy when tied to the exact diagnosed institution.

MUST-WRITE KEYWORDS

Rajamannar Committee; Sarkaria Commission; Punchhi Commission; Article 356; Governor neutrality; Inter-State Council

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Use commission recommendations as a dated reform menu: identify the diagnosed problem, the proposed institution and whether the proposal was adopted. **Named evidence:** First ARC report on Centre-State relations (1969); Rajamannar report (1971); Sarkaria report (1988); Punchhi report (2010); ISC establishment order (1990).

Analysis: The sequence moves from delegation and State-resource concerns to autonomy claims, then toward a strong-but-non-centralised Union, regular consultation, neutral offices and updated fiscal or dispute institutions.

Qualification: Recommendations, including Punchhi's localised-emergency proposal, are not binding unless separately adopted; the 1990 ISC implements one proposal, not the entire reports.

NAMED EVIDENCE

First ARC report on Centre-State relations (1969); Rajamannar report (1971); Sarkaria report (1988); Punchhi report (2010); ISC establishment order (1990).

PRELIMS TRAP

Do not present unimplemented commission recommendations, including localised emergency proposals, as binding constitutional rules.

MAINS USE

Use for a balanced reform conclusion that preserves both Union capacity and State autonomy.

MINI RECAP

The historical direction is from unilateral control toward institutionalised consultation, but adoption remains uneven.

Exactly **32 original MCQs** follow. Q1-Q24 test the constitutional and institutional spine; Q25-Q32 target inter-State and reform traps. Correct options follow ABCD eight times. Every option receives a question-specific explanation.

BASIC MCQS / REMEDIATION

Q1. With reference to Article 245, consider the following statements:

1. Parliament may make laws for the whole or any part of India.
2. A parliamentary law is not invalid merely because it has extra-territorial operation.
3. A State law can never affect a person or transaction outside the State.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Answer: A.

- **A:** Correct. Clauses (1) and (2) give Parliament territorial reach and protect its law from invalidity merely for extra-territorial operation.
- **B:** Incorrect. Statement 3 ignores territorial nexus, under which a real and pertinent connection may support limited extra-State effect of State law.
- **C:** Incorrect. Statement 3 is too absolute even though statement 1 correctly describes Parliament's basic territorial power.
- **D:** Incorrect. The first two statements are textually sound, but the categorical denial of territorial nexus makes statement 3 false.

Examiner trap: Article 245 distinguishes Parliament's extra-territorial rule from the judicially developed territorial-nexus limit on State law.

Q2. Which sequence correctly reflects the constitutional priority under Article 246?

A. State List over Concurrent List over Union List B. Union List over Concurrent List over State List C. Concurrent List over Union List over State List D. All three Lists have identical priority in every conflict

Answer: B.

- **A:** Incorrect. Article 246(3) expressly makes State competence subject to clauses (1) and (2), so List II is not supreme in overlap.
- **B:** Correct. The notwithstanding and subject-to clauses create Union, then Concurrent, then State priority where reconciliation fails.
- **C:** Incorrect. Concurrent competence is subject to Parliament's exclusive Union List power and does not outrank List I.
- **D:** Incorrect. Courts first reconcile fields, but the constitutional clauses still provide a priority structure for irreconcilable overlap.

Examiner trap: Priority is a conflict rule after interpretation; it does not justify reading State entries narrowly from the outset.

Q3. Article 246A is best described as:

A. a new tax entry in the Concurrent List B. exclusive State power over intra-State GST and exclusive Union power over all other GST C. a special simultaneous GST power, with Parliament exclusively competent for inter-State supplies D. a provision making every GST Council recommendation self-executing

Answer: C.

- **A:** Incorrect. Article 246A is a standalone constitutional competence provision rather than an inserted List III entry.
- **B:** Incorrect. Parliament and States share intra-State GST competence; Parliament's special exclusivity concerns inter-State supplies.
- **C:** Correct. The provision creates simultaneous legislative authority and a distinct parliamentary rule for inter-State GST.
- **D:** Incorrect. Legislative competence under Article 246A is separate from the recommendatory role of the Council under Article 279A.

Examiner trap: Do not import Article 254's ordinary Concurrent-List repugnancy structure into Article 246A without examining the special GST design.

Q4. Residuary legislative power, including residuary taxation, is located in:

A. Article 263 and the Inter-State Council B. Article 280 and the Finance Commission C. Article 246A and the GST Council D. Article 248 read with Union List Entry 97

Answer: D.

- **A:** Incorrect. Article 263 concerns advisory intergovernmental coordination and creates no residuary law-making field.
- **B:** Incorrect. Article 280 recommends fiscal distribution; it does not allocate unenumerated legislative subjects.
- **C:** Incorrect. Article 246A is confined to GST and cannot serve as the general constitutional residue.
- **D:** Correct. Parliament has exclusive competence over a matter, including a tax, not enumerated in Lists II or III.

Examiner trap: A matter that fairly falls within List II cannot be pulled into Entry 97 merely by calling it new or nationally important.

Q5. Which combination correctly states the Article 249 route?

A. Rajya Sabha; two-thirds of members present and voting; national interest; resolution up to one year
B. Lok Sabha; special majority; financial emergency; resolution up to six months
C. Two State legislatures; simple majority; treaty implementation; permanent transfer
D. President; Cabinet advice; internal disturbance; automatic State-law repeal

Answer: A.

- **A:** Correct. The Council of States supplies the special trigger, and each resolution may operate for a period not exceeding one year.
- **B:** Incorrect. Lok Sabha and financial emergency are not the institutional or substantive triggers in Article 249.
- **C:** Incorrect. Resolutions of two or more State legislatures belong to Article 252, not Article 249.
- **D:** Incorrect. Article 249 neither begins with presidential satisfaction nor automatically repeals State legislation.

Examiner trap: Article 249 is a Rajya Sabha national-interest gateway, not one of the proclamations in Part XVIII.

Q6. A parliamentary law made under Article 250:

A. continues permanently unless every State agrees to repeal it
B. operates while a National Emergency is in force and ordinarily ceases six months after it ends
C. requires resolutions of two or more States before enactment
D. automatically invalidates every earlier State law for all time

Answer: B.

- **A:** Incorrect. Article 250 is temporary and does not depend on unanimous State consent for its cessation.
- **B:** Correct. The emergency supplies competence, while the six-month tail permits transition after the emergency ceases.
- **C:** Incorrect. State legislative resolutions define Article 252, whereas Article 250 follows an operating Article 352 Emergency.
- **D:** Incorrect. Article 251 makes the State law inoperative only to the extent of inconsistency while the parliamentary law remains effective.

Examiner trap: Match Article 250 only with National Emergency, not with President's Rule or financial emergency.

Q7. Consider the following statements on Article 252:

1. Resolutions of two or more State legislatures initiate the route.
2. The law automatically applies to all States.
3. Another State may later adopt the law.
4. A participating State may amend the law by its own legislation.

Which are correct?

A. 1 and 2 only
B. 2 and 4 only
C. 1 and 3 only
D. 1, 3 and 4 only

Answer: C.

- **A:** Incorrect. Statement 2 is false because the enactment initially applies to the resolving States, not automatically to every State.
- **B:** Incorrect. Both statements 2 and 4 contradict the consent-based territorial design and Parliament's retained amendment power.
- **C:** Correct. Two or more States initiate, and another State may adopt the parliamentary law later by resolution.
- **D:** Incorrect. Statement 4 is false: amendment or repeal must be by Parliament in the like manner.

Examiner trap: Article 252 State consent expands Parliament's territory of operation but does not give participating States unilateral repeal power.

Q8. Which statement correctly distinguishes Articles 253 and 356-357?

A. Both require prior resolutions of two State legislatures. B. Both laws cease immediately when their triggering event ends. C. Article 253 is confined to Union List matters, while Article 356 excludes State subjects. D. Article 253 implements international obligations; a law under Articles 356-357 may continue after President's Rule until altered by competent authority.

Answer: D.

- **A:** Incorrect. Neither route depends on Article 252-style resolutions by two or more State legislatures.
- **B:** Incorrect. Article 357(2) expressly preserves a law after the proclamation until it is altered, repealed or amended.
- **C:** Incorrect. Article 253 can reach a State field for international implementation, while Articles 356-357 concern State legislative power.
- **D:** Correct. The first is an external-obligation route; the second has a distinct post-proclamation survival rule.

Examiner trap: The six-month tails of Articles 249 and 250 must not be copied into the different Article 357 continuation rule.

Q9. Which set is correctly matched?

A. Pith and substance-true character; territorial nexus-geographical connection; incidental encroachment-limited overlap may survive B. Pith and substance-Presidential assent; territorial nexus-Concurrent repugnancy; incidental encroachment-automatic invalidity C. Pith and substance-tax distribution; territorial nexus-treaty implementation; incidental encroachment-Article 356 D. Pith and substance-executive direction; territorial nexus-Finance Commission; incidental encroachment-Article 301

Answer: A.

- **A:** Correct. The three concepts respectively test dominant character, State-law reach and tolerable ancillary overlap.
- **B:** Incorrect. Presidential assent and repugnancy are Article 254 issues, not definitions of pith, nexus or incidental effect.
- **C:** Incorrect. The listed fiscal, treaty and emergency subjects do not describe these competence doctrines.
- **D:** Incorrect. Administrative, fiscal and trade provisions are unrelated to the three judicial tests in the option.

Examiner trap: A law may incidentally touch another List yet remain valid; the doctrine does not authorise substantial occupation of an alien field.

Q10. Which proposition about delegated and colourable legislation is correct?

A. Delegation permits the executive to choose the essential legislative policy without limits. B. Delegated rules must stay within the parent Act and competence; colourable legislation exposes an indirect attempt to do what is constitutionally forbidden. C. Presidential assent validates any delegated rule even if the parent legislature lacked competence. D. Colourable legislation applies only when a law uses deceptive language, regardless of substance.

Answer: B.

- **A:** Incorrect. Essential legislative policy must be determined by the competent legislature; administration may fill bounded details.
- **B:** Correct. Both doctrines insist that constitutional competence cannot be enlarged through subordinate form or legislative disguise.
- **C:** Incorrect. Assent cannot cure lack of legislative field, excessive delegation or a rule exceeding its enabling Act.
- **D:** Incorrect. The colourable-legislation inquiry looks to substance and constitutional capacity, not verbal dishonesty alone.

Examiner trap: Delegation is an implementation technique, not a sixth route for Parliament to enter the State List.

Q11. A State law on a Concurrent subject, repugnant to an earlier parliamentary law, has received Presidential assent. Which result follows?

A. It becomes valid throughout India and displaces Parliament. B. It becomes immune from every future parliamentary enactment. C. It may prevail in that State, but Parliament may later add to, amend, vary or repeal it. D. It automatically converts the subject into the State List.

Answer: C.

- **A:** Incorrect. Article 254(2) gives a State-specific exception, not nationwide priority over Parliament.
- **B:** Incorrect. The concluding words of Article 254(2) expressly preserve later parliamentary override.
- **C:** Correct. Assent qualifies the ordinary priority rule within that State while retaining Parliament's future competence.
- **D:** Incorrect. Presidential assent affects the conflicting law's operation; it does not amend the Seventh Schedule.

Examiner trap: Before applying Article 254(2), confirm that the State law was within State competence and that a real Concurrent-field repugnancy exists.

Q12. Which statement is correct about State Bills and related procedural controls?

A. Previous Presidential sanction and reservation for the President are the same stage. B. Article 201 compels Presidential assent whenever a returned State Bill is repassed. C. Article 255 cures every defect, including lack of legislative competence. D. Article 200 governs Governor action; Article 201 governs Presidential consideration; Article 255 provides only a limited procedural cure.

Answer: D.

- **A:** Incorrect. Previous sanction operates before the legislative step specified by the Constitution, whereas reservation follows passage and presentation.
- **B:** Incorrect. Article 201 contains no Article 200-style command that the President must assent after State reconsideration.
- **C:** Incorrect. Article 255 addresses specified recommendation or sanction procedure and cannot validate substantive incompetence.
- **D:** Correct. The three provisions occupy different stages and have different legal effects.

Examiner trap: Do not convert the 2023 Punjab Governor ruling or the 2025 advisory opinion into a universal fixed assent deadline.

Q13. Under Articles 256 and 257, the Union may:

A. issue constitutionally grounded directions for compliance, non-impediment, specified communications and railway protection B. take permanent control of State police whenever implementation is disputed C. treat every policy disagreement as Article 365 non-compliance D. require prior Union approval for all State executive decisions

Answer: A.

- **A:** Correct. The provisions identify implementation and non-impediment duties plus specific direction fields.
- **B:** Incorrect. Police remains a State field, and the direction provisions do not create an unrestricted takeover power.
- **C:** Incorrect. Article 365 requires actual failure to comply with constitutional directions and still does not automate Article 356.
- **D:** Incorrect. The Constitution does not establish a general prior-approval regime for the State executive.

Examiner trap: Direction power must be tied to the constitutional text; administrative convenience alone is not an independent source.

Q14. Which matching is correct?

A. Article 258-State functions entrusted to Union without Union consent; Article 258A-Union functions entrusted to State without State consent B. Article 258-Union functions may be entrusted with State consent; Article 258A-State functions may be entrusted with Union consent C. Article 260-automatic transfer of State judicial power to the Union D. Article 259-current general power of reciprocal delegation

Answer: B.

- **A:** Incorrect. The directions and consent requirements are reversed in both parts of the option.
- **B:** Correct. Articles 258 and 258A create reciprocal consensual entrustment in opposite directions.
- **C:** Incorrect. Article 260 concerns functions in relation to a territory outside India under an agreement, not absorption of State power.
- **D:** Incorrect. Article 259 is omitted and supplies no operative delegation power.

Examiner trap: Article 258(2) separately allows parliamentary law to confer powers or impose duties and must not be confused with consensual entrustment under clause (1).

Q15. Which statement about All-India Services is correct?

A. Lok Sabha may create one by simple majority resolution without legislation. B. Indian Foreign Service is the third All-India Service. C. Rajya Sabha must adopt a two-thirds present-and-voting national-interest resolution before Parliament creates a new common service. D. Article 312 places every service officer exclusively under day-to-day Union control.

Answer: C.

- **A:** Incorrect. Article 312 assigns the initiating federal resolution to Rajya Sabha and then requires parliamentary law.
- **B:** Incorrect. The Indian Forest Service is the third All-India Service; the Foreign Service is a Central Civil Service.
- **C:** Correct. The special Rajya Sabha threshold precedes legislation creating one or more services common to Union and States.
- **D:** Incorrect. Common cadres involve Union and State control; officers serving State posts are not under exclusive daily Union administration.

Examiner trap: The similar abbreviations IFS and IFoS conceal a high-frequency Prelims distinction.

Q16. Regarding CBI jurisdiction and the 2024 West Bengal ruling, which statement is most accurate?

A. State withdrawal of general consent automatically nullifies all earlier investigations. B. Section 6 consent binds even Supreme Court and High Court orders. C. The 2024 judgment finally upheld every merits claim made by West Bengal. D. Ordinary DSPE exercise in a State needs consent, constitutional courts retain power, and the 2024 ruling rejected preliminary objections without deciding merits.

Answer: D.

- **A:** Incorrect. Withdrawal generally affects fresh ordinary cases and does not mechanically erase all lawfully commenced proceedings.
- **B:** Incorrect. Articles 32 and 226 permit constitutional courts to direct CBI investigation without State consent.
- **C:** Incorrect. 2024 INSC 502 expressly confined its findings to the preliminary objection and left the suit to proceed on merits.
- **D:** Correct. It preserves the statutory federal safeguard, judicial exception and exact procedural status of the Article 131 suit.

Examiner trap: Maintainability is not a merits judgment; use the phrase 'preliminary objection rejected' rather than 'CBI action held unlawful'.

Q17. Which constitutional sequence is correct?

A. Article 355 duty -> possible Article 365 inference -> separately controlled Article 356 remedy -> Article 357 legislative consequence B. Article 365 proclamation -> automatic Assembly dissolution -> Article 355 approval C. Article 357 duty -> Article 356 direction -> Article 365 tax consequence D. Article 355 authorisation -> permanent Union acquisition of the State List

Answer: A.

- **A:** Correct. The sequence keeps protection duty, non-compliance inference, exceptional proclamation and legislative effect analytically distinct.
- **B:** Incorrect. Article 365 is not a proclamation and does not automatically dissolve a legislature.
- **C:** Incorrect. The Articles are assigned the wrong functions and none of them creates an ordinary tax-distribution consequence.
- **D:** Incorrect. Article 355 does not permanently transfer State legislative fields to Parliament.

Examiner trap: Use *S.R. Bommai* for review and floor-test discipline, but leave complete Article 356 duration rules to the Emergency topic.

Q18. Which statement correctly links public funds and tax assignment?

A. All State tax revenue is first credited to the Consolidated Fund of India. B. Article 266 creates separate Consolidated Funds, while Article 268 covers specified Union levies collected and appropriated by States. C. Article 269A places IGST entirely in State Consolidated Funds without apportionment. D. Article 268 is the general Finance Commission devolution article.

Answer: B.

- **A:** Incorrect. Article 266 maintains separate Union and State Consolidated Funds according to the source and governmental level.
- **B:** Correct. The public-fund rule and the special Article 268 collection/appropriation arrangement are distinct but compatible.
- **C:** Incorrect. Article 269A provides Union levy and collection with apportionment between Union and States.
- **D:** Incorrect. General divisible-pool distribution is anchored in Article 270, with recommendations under Article 280.

Examiner trap: Levy, collection, appropriation and distribution are separate verbs; a correct answer must identify each one.

Q19. Consider the following statements:

1. Article 270 concerns distribution of specified Union taxes between Union and States.
2. Article 271 permits a Union-purpose surcharge whose whole proceeds form part of the Consolidated Fund of India.
3. Article 271 applies without qualification to GST under Article 246A.
4. Specific-purpose parliamentary cesses are excluded from the divisible pool under Article 270.

Which are correct?

A. 1 and 2 only B. 2 and 3 only C. 1, 2 and 4 only D. 1, 3 and 4 only

Answer: C.

- **A:** Incorrect. Statements 1 and 2 are true, but statement 4 is also a central divisible-pool distinction.
- **B:** Incorrect. Statement 3 ignores Article 271's express GST exclusion.
- **C:** Correct. Shared taxes, surcharges and specific-purpose cesses receive different constitutional treatment.
- **D:** Incorrect. Statement 3 is false even though statements 1 and 4 correctly identify distribution and exclusion.

Examiner trap: A high devolution percentage can coexist with a narrower shareable base; never equate divisible pool with gross Union tax revenue.

Q20. Which option correctly completes the grants and procedure map?

A. Article 273 creates a permanent universal revenue-deficit grant. B. Article 274 concerns Zonal Council consultation on tax Bills. C. Article 275 is only an executive-discretion grant and Article 282 is mandatory. D. Article 273 was a temporary jute-duty arrangement; Article 274 requires Presidential recommendation for specified tax Bills; Articles 275 and 282 are distinct grant routes.

Answer: D.

- **A:** Incorrect. Article 273 was time-bound and historically specific, not a permanent equalisation grant.
- **B:** Incorrect. Article 274 deals with Presidential recommendation for specified taxation legislation, not regional councils.
- **C:** Incorrect. Article 275 provides constitutional grants-in-aid, whereas Article 282 permits either level to make public-purpose grants.
- **D:** Correct. It preserves the historical, procedural, constitutional-grant and discretionary-grant distinctions.

Examiner trap: Do not collapse Article 275 Finance Commission-linked grants and Article 282 public-purpose spending into one transfer category.

Q21. The Finance Commission under Article 280:

A. is constituted by the President every fifth year or earlier and recommends vertical distribution, inter se shares and grant principles B. is a permanent executive department chaired by the Union Finance Minister C. makes recommendations that automatically amend the Constitution D. replaces State Finance Commissions and the GST Council

Answer: A.

- **A:** Correct. Its periodic constitutional mandate includes tax distribution and grants, with later additions concerning local-body fund augmentation.
- **B:** Incorrect. It is periodically constituted by the President, not a permanent ministry or cabinet committee.
- **C:** Incorrect. Recommendations require governmental consideration and Article 281 parliamentary laying; they are not self-amending law.
- **D:** Incorrect. State Finance Commissions and the GST Council have different constitutional levels and functions.

Examiner trap: Calling the Finance Commission 'quasi-judicial' or a 'balancing wheel' is descriptive textbook language, not constitutional text.

Q22. Which statement reflects the accepted Sixteenth Finance Commission position for 2026-27 to 2030-31?

A. States receive 42 percent of gross Union tax revenue. B. States receive 41 percent of the divisible pool; the horizontal formula includes contribution to State GDP alongside equalisation-related criteria. C. Tax effort alone determines every State's share. D. Revenue-deficit and State-specific grants were constitutionally abolished for all future Commissions.

Answer: B.

- **A:** Incorrect. The accepted share is 41 percent of net proceeds in the divisible pool, not 42 percent of gross tax revenue.
- **B:** Correct. The February 2026 Explanatory Memorandum records the vertical share and the six accepted horizontal criteria.
- **C:** Incorrect. The formula uses multiple criteria, and tax effort was not retained in the accepted Sixteenth Commission formula.
- **D:** Incorrect. The Commission did not recommend those grants for this award period; no permanent constitutional prohibition was created.

Examiner trap: A Finance Commission recommendation is dated to its award period; it is not a timeless constitutional percentage or formula.

Q23. For a formal GST Council decision, which voting structure is correct?

A. Simple majority, with equal votes for every government B. Two-thirds majority, with the Union holding one-half of votes C. Three-fourths weighted majority of members present and voting; Union one-third, States together two-thirds D. Unanimity is constitutionally mandatory in every case

Answer: C.

- **A:** Incorrect. Article 279A creates weighted voting rather than one-government-one-vote simple majority.
- **B:** Incorrect. The Union has one-third, not one-half, of the weighted vote.
- **C:** Correct. The formula makes both Union participation and substantial State support necessary for a formal decision.
- **D:** Incorrect. Consensus is a valuable practice, but the constitutional text supplies a weighted voting threshold.

Examiner trap: Quorum is one-half of total membership; do not confuse quorum with the three-fourths decision threshold.

Q24. What did *Union of India v. Mohit Minerals (2022)* hold about the GST Council?

A. Its recommendations override every inconsistent State law under Article 254. B. It has no constitutional significance once States disagree. C. Only the Union possesses primary GST legislative power. D. Its recommendations are persuasive and products of collaborative dialogue, while Parliament and States possess simultaneous legislative power.

Answer: D.

- **A:** Incorrect. Article 246A's special simultaneous design is not governed by an automatic Article 254 Council override.
- **B:** Incorrect. Non-binding recommendations still structure harmonisation, negotiation and statutory implementation.
- **C:** Incorrect. States possess GST law-making authority within the constitutional design, subject to the inter-State-supply rule.
- **D:** Correct. The Court protected legislative autonomy while emphasising cooperation and the Council's persuasive role.

Examiner trap: Non-binding is not synonymous with optional, irrelevant or incapable of shaping enacted GST law.

Q25. Under Article 293, when does a State require Union consent for further borrowing?

A. When a Union loan to the State or a Union-guaranteed loan remains outstanding B. Whenever the State borrows from any source, even with no outstanding Union-linked loan C. Only during a Financial Emergency D. Only after the Finance Commission refuses a grant

Answer: A.

- **A:** Correct. Clause (3) links consent to outstanding Union loans or Union-guaranteed loans, and clause (4) permits conditions.
- **B:** Incorrect. The text does not impose a universal consent rule detached from the outstanding-loan condition.
- **C:** Incorrect. Article 293 is an ordinary fiscal-federal provision and does not wait for Article 360.
- **D:** Incorrect. Finance Commission grants and borrowing consent are separate mechanisms.

Examiner trap: The Kerala litigation concerns the contested breadth of current borrowing controls; the 2024 interim order did not settle that merits issue.

Q26. Which statement correctly compares the two 1956 river-water statutes?

A. Both create binding tribunals for every basin automatically. B. The River Boards Act provides an advisory development mechanism; the Inter-State River Water Disputes Act provides dispute-specific adjudication and a jurisdiction bar. C. The River Boards Act repeals Article 131, while the Disputes Act creates Zonal Councils. D. Both were replaced by the 2019 Amendment Bill.

Answer: B.

- **A:** Incorrect. A River Board is advisory, and tribunal creation follows the statutory dispute process rather than automatic basin coverage.
- **B:** Correct. Regulation/development advice and adjudication are separate institutional responses to inter-State waters.
- **C:** Incorrect. Neither Act creates Zonal Councils, and Article 131 is subject to the constitutional and statutory jurisdiction design.
- **D:** Incorrect. The 2019 Bill did not become law, so the existing Acts remain operative.

Examiner trap: Do not use 'river board', 'tribunal', 'management authority' and 'Inter-State Council' as interchangeable labels.

Q27. Which proposition about Articles 131 and 262 is accurate?

A. Article 131 decides every political disagreement even without a legal right. B. Article 262 itself automatically bars courts without parliamentary legislation. C. Article 131 covers qualifying legal-right disputes, while Parliament may use Article 262 to create adjudication and exclude courts for defined water disputes. D. An Inter-State Council recommendation binds the Supreme Court in an Article 131 suit.

Answer: C.

- **A:** Incorrect. Article 131 requires a dispute on which the existence or extent of a legal right depends.
- **B:** Incorrect. Article 262 authorises Parliament; the statutory bar is supplied by legislation such as section 11 of the 1956 Act.
- **C:** Correct. The provisions create related but distinct federal adjudication routes with a water-specific exclusion possibility.
- **D:** Incorrect. Article 263 advice has no power to bind constitutional adjudication.

Examiner trap: Water allocation may involve negotiation, adjudication and implementation, but the legal jurisdiction for each stage must be identified separately.

Q28. Which institutional classification is correct?

A. Inter-State Council-statutory; Zonal Councils-constitutional; NEC-executive B. Inter-State Council-judicial; Zonal Councils-executive; NEC-constitutional C. All three are constitutional bodies because they coordinate States D. Inter-State Council-Article 263 and 1990 Order; Zonal Councils-1956 statute; NEC-separate 1971 statute

Answer: D.

- **A:** Incorrect. It reverses the constitutional enabling source and both statutory foundations.
- **B:** Incorrect. None of these advisory forums is a court, and the status labels are wrongly assigned.
- **C:** Incorrect. Similar intergovernmental functions do not create identical legal status.
- **D:** Correct. The constitutional provision, Presidential establishment order and two different statutes must be kept distinct.

Examiner trap: The NEC is not a sixth Zonal Council, even though both perform regional coordination functions.

Q29. Article 261 provides that:

A. full faith and credit extends across India to public acts, records and judicial proceedings, with civil judgments executable according to law B. every State criminal law automatically operates and is enforced in every other State C. only Union records receive recognition outside their territory D. Parliament cannot prescribe the manner of proof or effect

Answer: A.

- **A:** Correct. The clause supports legal continuity while allowing parliamentary rules of proof/effect and nationwide civil execution.
- **B:** Incorrect. Clause (3) specifically addresses final civil judgments and does not nationalise every State penal law.
- **C:** Incorrect. The text includes the Union and every State, not Union documents alone.
- **D:** Incorrect. Article 261(2) expressly authorises Parliament to prescribe proof and effect.

Examiner trap: Full faith and credit recognises legal acts across borders; it does not merge State jurisdictions or erase criminal-law limits.

Q30. After Jindal Stainless (2016), which statement best describes Part XIII?

A. Every State tax affecting goods is invalid unless it is compensatory. B. Article 301 does not create tax immunity; Article 304(a) centrally tests discriminatory taxation, while Article 304(b) is a separate restriction route. C. Article 304(b) validates a discriminatory tax whenever public interest is claimed. D. Only Parliament, never a State, may impose any trade restriction.

Answer: B.

- **A:** Incorrect. The nine-judge Bench rejected the compensatory-tax doctrine as the controlling constitutional test.
- **B:** Correct. The common-market guarantee operates through non-discrimination and the distinct textually permitted restrictions.
- **C:** Incorrect. A reasonable restriction under clause (b) does not cure discrimination prohibited by clause (a).
- **D:** Incorrect. States possess bounded authority under Article 304, including taxation and reasonable public-interest restrictions.

Examiner trap: Previous Presidential sanction belongs to Article 304(b), not to every non-discriminatory tax under Article 304(a).

Q31. Which commission recommendation set is correctly matched?

A. Rajamannar-retain all centralising arrangements; Sarkaria-abolish ISC; Punchhi-make Article 356 automatic B. First ARC-oppose delegation; Sarkaria-treat Article 356 as routine; Punchhi-abolish Zonal Councils C. First ARC-ISC/delegation/resources; Sarkaria-last-resort Article 356 and Concurrent consultation; Punchhi-stronger councils and updated Governor/fiscal norms D. All commission recommendations became binding constitutional amendments on submission

Answer: C.

- **A:** Incorrect. Rajamannar sought extensive State autonomy, Sarkaria promoted the ISC, and Punchhi did not propose automatic President's Rule.
- **B:** Incorrect. The First ARC favoured delegation, while Sarkaria viewed Article 356 as a last resort and Punchhi sought stronger coordination.
- **C:** Correct. The option accurately captures the distinct reform emphases while preserving their recommendatory status.
- **D:** Incorrect. Commission reports require separate constitutional, statutory or executive adoption before acquiring legal force.

Examiner trap: A marks-worthy commission reference names the diagnosed problem and proposal, then states whether it was adopted.

Q32. Which reform package best balances Union capacity with State autonomy?

A. Replace all State discretion with uniform Union directions and conditional grants. B. Treat every intergovernmental dispute as non-justiciable political bargaining. C. Make every council recommendation binding without constitutional amendment. D. Regular consultation, transparent divisible-pool data, reasoned discretion, objective borrowing conditions, shared river data and enforceable implementation

Answer: D.

- **A:** Incorrect. Uniform command may improve speed but would ignore constitutionally assigned State responsibility and regional variation.
- **B:** Incorrect. Article 131, judicial review and statutory tribunals remain necessary for legal-right disputes.
- **C:** Incorrect. Advisory forums cannot be transformed into binding authorities merely by assertion.
- **D:** Correct. The package pairs national coordination with participation, evidence, legal accountability and predictable fiscal rules.

Examiner trap: Balanced reform should repair the institution matched to the friction rather than repeat 'cooperative federalism' as an unexplained slogan.

PYQS AND ANSWER PRACTICE

Routed PYQs with complete solutions

Eleven direct/supporting routes are retained exactly by year, paper and demand. The three objective answers are printed only because final official Set-A keys are held locally.

PYQ 1 - UPSC GS-II 2019, Q4 - direct

Question: From the resolution of contentious issues regarding distribution of legislative powers by the courts, "Principle of Federal Supremacy" and "Harmonious Construction" have emerged. Explain. **10 marks | 150 words**

Demand decoding: Explain requires a sequential doctrine answer: allocation, reconciliation, irreconcilable conflict and qualified supremacy.

Model solution

The Seventh Schedule distributes legislative fields, but modern laws overlap. Courts therefore reconcile entries before invalidating legislation.

Harmonious construction gives broad meaning to each entry while preserving meaningful operation of both Union and State fields. **Pith and substance** supports this approach: if a law's dominant character lies within competence, incidental encroachment survives.

Federal supremacy operates when reconciliation fails. Article 246 gives Union List predominance through its notwithstanding clause. On a Concurrent subject, Article 254 ordinarily makes parliamentary law prevail over repugnant State law. A State law reserved for and receiving Presidential assent may operate within that State, but Parliament can subsequently override it.

The doctrines are therefore sequential, not contradictory. Harmonious construction protects federal autonomy; supremacy prevents legal paralysis. Sarkaria described federal supremacy as a technique to avoid absurdity and resolve conflict.

Thus, Indian legislative federalism is accommodative in interpretation but Union-weighted at the point of irreconcilable conflict.

Answer-prose count: 148 words.

Examiner focus: It defines both doctrines, anchors Articles 246/254 and shows their order rather than listing them. In the exam, draw a three-arrow sequence-pith and substance -> harmonious construction -> Article 254-and retain the Sarkaria line only if space permits.

PYQ 2 - UPSC GS-II 2020, Q11 - direct

Question: The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the Disaster Management Act, 2005 and the recently passed Farm Acts. **15 marks | 250 words**

Demand decoding: Elucidate requires showing how emergency and Concurrent-field laws reveal centralising capacity, with both necessity and federal cost.

Model solution

India's holding-together federation gives the Union exceptional capacity to coordinate national crises and markets. Recent legislation showed both the necessity and federal cost of that design.

During COVID-19, the Union used the Disaster Management Act, 2005 for nationwide directions, while the Epidemic Diseases Act, 1897 operated through State measures. Uniform restrictions, procurement and movement rules supplied scale but also compressed State policy space in public health, a State subject.

The 2020 Farm Acts relied substantially on Concurrent List Entry 33 concerning trade in foodstuffs, yet affected agriculture and markets associated with State List Entries 14 and 28. States argued that legal competence was being used without adequate federal consultation. The Acts were repealed in 2021, demonstrating political federalism and mobilisation.

Other centralising tools include residuary power, Articles 249, 250, 253 and 356, All-India Services, conditional schemes and fiscal dependence. However, centralisation is not unlimited: *S.R. Bommai* makes federalism Basic Structure; courts apply pith and substance; GST requires shared institutions; States retain electoral and implementation power.

Therefore, national coordination may justify central legislation, but legitimacy requires necessity, clear List competence, consultation and proportionality. Unity is strengthened when Union capacity works through cooperative institutions rather than treating States as implementing agencies.

Answer-prose count: 200 words.

Examiner focus: It uses the named statutes and Farm Acts, connects List entries, and balances centralisation with Bommai and political repeal. Compress the general centralising-tool list to one sentence and spend the saved words on consultation and proportionality, which answer the evaluative edge.

PYQ 3 - UPSC GS-II 2021, Q11 - supporting

Question: The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India. **15 marks | 250 words**

Demand decoding: Explain the statutory consent rule, its constitutional exceptions and why neither State consent nor Union investigation is absolute.

Model solution

Police is a State subject, while the CBI exercises investigative powers through the Delhi Special Police Establishment Act, 1946. Section 6 therefore requires State consent for DSPE jurisdiction within a State.

General consent permits routine registration; withdrawal ordinarily requires case-specific consent for fresh cases. This is a real federal safeguard against an unrestricted parallel central police force.

The safeguard is not absolute. The Supreme Court under Article 32 and High Courts under Article 226 may order a CBI probe without State consent to secure fair investigation and fundamental rights. Withdrawal also does not automatically nullify every validly commenced case, and territorial or accused-specific questions can affect jurisdiction.

In *State of West Bengal v. Union of India* (2024), the Supreme Court rejected the Union's preliminary objection and allowed the State's Article 131 suit to proceed; it did not finally decide all substantive claims.

The federal balance requires State police autonomy, national coordination for cross-border corruption and judicial power where local investigation is compromised. A dedicated CBI statute, transparent consent protocols and independent appointment/accountability mechanisms would reduce political confrontation.

Thus, consent is constitutionally significant statutory federalism, but it cannot override constitutional-court power.

Answer-prose count: 191 words.

Examiner focus: It distinguishes DSPE consent, constitutional-court power and the limited 2024 West Bengal ruling. Add a two-column consent/exception mini-table in rough work; do not claim the 2024 ruling finally decided the merits.

PYQ 4 - UPSC GS-II 2022, Q13 - supporting

Question: While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment. **15 marks | 250 words**

Demand decoding: Comment requires testing the proposition as a political tendency, then qualifying it through changing party incentives and institutions.

Model solution

The claim captures a recurrent incentive, not an iron law. National parties seek uniform programmes, national markets and coordinated security, and therefore often favour Union legislation, centrally sponsored schemes and common institutions. Regional parties derive authority from territorially concentrated mandates and more often demand fiscal space, linguistic recognition, control over State subjects and restraint in the use of Governors and central agencies.

Yet party position changes with office. A national party governing a State may resist Union encroachment, while a regional party participating in a Union coalition may support central measures. Coalition governments, the GST Council and Rajya Sabha bargaining have periodically enlarged State influence. Conversely, a dominant parliamentary majority can reduce negotiated federalism.

The constitutional answer is institutional rather than partisan: regular Inter-State Council consultation, meaningful scrutiny of Concurrent legislation, predictable Finance Commission transfers and neutral constitutional offices. Thus, party geography shapes federal preferences, but constitutional forums must prevent temporary electoral advantage from defining Centre-State balance.

Answer-prose count: 157 words.

Examiner focus: It explains national/regional incentives, supplies coalition and Rajya Sabha counter-evidence, and avoids treating party labels as permanent doctrine. Use one concrete coalition-era illustration if confidently recalled; otherwise preserve the office-dependent qualification rather than inventing an example.

PYQ 5 - UPSC GS-II 2023, Q13 - supporting

Question: Account for the legal and political factors responsible for the reduced frequency of use of Article 356 by the Union Governments since the mid-1990s. **15 marks | 250 words**

Demand decoding: Account for requires causal explanation of both legal and political factors behind reduced Article 356 use.

Model solution

The decline reflects both judicial discipline and a changed party system. In *S.R. Bommai* (1994), the Supreme Court made Article 356 proclamations reviewable, required relevant material, protected floor tests as the normal majority test and permitted restoration of a dismissed government. Parliamentary approval and the possibility of judicial invalidation raised the legal cost of partisan dismissal.

Politically, coalition governments after 1989 depended on regional parties, whose bargaining power discouraged arbitrary action against States. Stronger regional mandates, public criticism of central misuse and the reputational cost of federal confrontation also mattered. Later single-party Union majorities did not erase these constraints because *Bommai* doctrine, electoral competition and the Rajya Sabha continued to impose checks.

The decline does not mean Centre-State conflict disappeared; disputes shifted toward Governors, investigations, finance and assent. Article 356 remains an emergency remedy, while Article 365 non-compliance is only relevant material. The reduced frequency therefore shows constitutional law and political federalisation reinforcing each other.

Answer-prose count: 156 words.

Examiner focus: It links Bommai safeguards with coalition/regional-party incentives and distinguishes declining proclamations from continuing federal conflict. Organise the body under Legal and Political subheads and end by naming the shift toward Governors, finance and agencies.

PYQ 6 - UPSC GS-II 2023, Q15 - direct

Question: Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism? **15 marks | 250 words**

Demand decoding: Explain significance and assess extent: first map the 101st Amendment, then evaluate how far its design is accommodative.

Model solution

The 101st Amendment created a shared constitutional tax field rather than merely altering rates. Article 246A gives Parliament and State legislatures GST competence; Article 269A governs inter-State GST apportionment; Article 279A creates the GST Council with Union and State representation. It replaced multiple indirect taxes with a destination-based system and supported a common market.

Its accommodative character lies in compulsory bargaining: the Union has one-third voting weight, States collectively two-thirds, and decisions require a three-fourths weighted majority. Consensus practice, compensation arrangements and joint administration converted fiscal autonomy into negotiated interdependence. *Mohit Minerals* further held Council recommendations recommendatory, preserving legislative authority at both levels.

Accommodation remains incomplete. States lost independent rate space, compensation disputes exposed dependence, and unequal revenue capacity affects bargaining power. A common tax can become centralising if consultation weakens. The Amendment is therefore a major example of cooperative fiscal federalism, but its success depends on consensus, transparent data, credible dispute resolution and respect for State legislative choice.

Answer-prose count: 159 words.

Examiner focus: It cites Articles 246A/269A/279A, weighted voting, consensus and Mohit Minerals, followed by limits on State fiscal space. Include the one-third/two-thirds/three-fourths voting formula; omit rate trivia unless the question asks current GST reform.

PYQ 7 - UPSC GS-II 2024, Q13 - direct

Question: What changes has the Union Government recently introduced in the domain of Centre-State relations? Suggest measures to be adopted to build the trust between the Centre and the States and for strengthening federalism. **15 marks | 250 words**

Demand decoding: Suggest demands two balanced halves: identify recent changes and offer institution-matched trust remedies.

Model solution

Centre-State relations have shifted from plan-era bargaining to a mixed Finance Commission-GST-NITI architecture, while administrative and legislative disputes have intensified.

Changes: The Planning Commission was replaced by NITI Aayog; the 14th Finance Commission increased untied devolution, followed by 41% under later Commissions. GST pooled indirect-tax autonomy through a constitutional Council. Centrally sponsored schemes, cesses and surcharges, borrowing conditions and central agencies continue to shape State choices. Governor assent, CBI consent and Concurrent-field legislation have become recurrent flashpoints.

Trust measures:

1. Convene the Inter-State Council regularly and publish implementation reports.
2. Consult States before major Concurrent List laws.
3. Follow Sarkaria/Punchhi norms for politically neutral Governors and reasoned action.
4. Reduce reliance on cesses outside the divisible pool and ensure predictable transfers.
5. Design schemes jointly with flexible State components.
6. Use consensus and a credible dispute process in the GST Council.
7. Clarify CBI powers and consent through comprehensive legislation.
8. Build shared river-basin data and compliance institutions.

S.R. Bommai makes federalism Basic Structure, but judicial protection alone cannot create cooperation.

Trust is an institutional output: States must repeatedly experience consultation before compulsion, fiscal predictability and neutral use of constitutional offices.

Answer-prose count: 193 words.

Examiner focus: It covers fiscal, legislative and administrative change and ties each remedy to ISC, GST, Finance Commission, Governor or CBI architecture. Pair every diagnosed deficit with one remedy; avoid an unstructured reform list and keep the conclusion focused on repeated institutional experience.

PYQ 8 - UPSC Prelims 2024, Q75 - direct objective

Question: Which one of the following statements is correct as per the Constitution of India?

A. Inter-State trade and commerce is a State subject under the State List. B. Inter-State migration is a State subject under the State List. C. Inter-State quarantine is a Union subject under the Union List. D. Corporation tax is a State subject under the State List.

Answer: C. OFFICIAL UPSC SET-A KEY.

- **A:** Incorrect. Union List Entry 42 covers inter-State trade and commerce.
- **B:** Incorrect. Union List Entry 81 covers inter-State migration and inter-State quarantine.
- **C:** Correct. Inter-State quarantine is expressly within Union List Entry 81.
- **D:** Incorrect. Corporation tax is within Union legislative and taxing competence.

Key discipline: The answer letter is printed because the repository holds the final official Set-A key.

PYQ 9 - UPSC GS-II 2025, Q14 - direct

Question: Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms impacted the fiscal federalism in India? **15 marks | 250 words**

Demand decoding: Examine requires a chronological fiscal transition, assessment of reforms and a graded verdict on practical autonomy.

Model solution

Centre-State finance has evolved from discretionary plan bargaining toward a more rules-based but still Union-dependent architecture.

During planned development, the Planning Commission and National Development Council shaped plan assistance, while Article 282 grants allowed broad executive discretion. The Finance Commission handled constitutional tax devolution and grants, producing parallel transfer channels.

Post-2015 reforms changed this pattern. NITI Aayog replaced the Planning Commission without assuming devolution powers. The 14th Finance Commission raised the States' tax share to 42%; later Commissions use 41%. GST pooled Union and State indirect taxes through Articles 246A, 269A and 279A, creating a common market and shared decision forum. The 16th Finance Commission retains 41% for 2026-31 and balances income distance with population, demographic, ecological and GDP-contribution criteria.

Reforms improved transparency, untied resources and institutional bargaining. *Mohit Minerals* preserves legislative autonomy by treating GST Council recommendations as non-binding.

However, vertical imbalance persists. Cesses and surcharges remain outside the divisible pool; centrally sponsored schemes impose conditions; GST narrowed independent rate space; Article 293 borrowing consent creates leverage.

Thus, fiscal federalism is more rules-based but not fiscally equal. Protecting the divisible pool, predictable schemes, robust GST dispute resolution and stronger State revenue capacity are necessary for meaningful autonomy.

Answer-prose count: 198 words.

Examiner focus: It connects plan-era discretion, Finance Commission devolution, GST and NITI with cesses, schemes and Article 293 constraints. Use a three-stage timeline-Planning era -> post-2015 -> 16th FC-and distinguish divisible-pool share from gross Union tax revenue.

PYQ 10 - UPSC Prelims 2025, Q53 - direct objective

Question: With reference to India, consider the following:

1. The Inter-State Council
2. The National Security Council
3. Zonal Councils

How many of the above were established as per provisions of the Constitution of India?

A. Only one B. Only two C. All the three D. None

Answer: A. OFFICIAL UPSC SET-A KEY.

- **1:** Article 263 provides for establishment of an Inter-State Council.
- **2:** The National Security Council is an executive, non-constitutional body.
- **3:** Zonal Councils are statutory bodies under the States Reorganisation Act, 1956.

Key discipline: 'Provided for by the Constitution' is narrower than merely serving a constitutional or national purpose.

PYQ 11 - UPSC Prelims 2025, Q89 - direct objective

Question: Consider the following statements:

Statement I: In India, State Governments have no power for making rules for grant of concessions in respect of extraction of minor minerals even though such minerals are located in their territories. Statement II: In India, the Central Government has the power to notify minor minerals under the relevant law.

Which one of the following is correct?

A. Both statements are correct and Statement II explains Statement I B. Both statements are correct but Statement II does not explain Statement I C. Statement I is correct but Statement II is not correct D. Statement I is not correct but Statement II is correct

Answer: D. OFFICIAL UPSC SET-A KEY.

- **Statement I:** Incorrect. Section 15 of the MMDR Act empowers State Governments to make rules for minor-mineral concessions.
- **Statement II:** Correct. Section 3(e) authorises the Central Government to notify minerals as minor minerals.

Key discipline: A parliamentary framework may distribute category and rule-making powers between different levels.

Six original Mains questions with full model answers

Two 10-mark answers use a 150-word ceiling; two 15-mark and two 20-mark answers use a 250-word ceiling.

Original Q1. 10 marks | 150 words

Question: Explain the constitutional relationship between Articles 256, 257, 365 and 356. Why is non-compliance with Union directions not equivalent to automatic President's Rule?

Demand decoding: Explain the 256-257-365-356 sequence and expressly rebut automaticity.

Model solution

Article 256 requires States to ensure compliance with parliamentary and applicable laws and permits Union directions for that purpose. Article 257 requires State executive power not to impede Union executive power and permits specified directions concerning national/military communications and railway protection.

Article 365 provides that failure to comply with Union directions may permit the President to hold that State government cannot be carried on according to the Constitution. It therefore supplies a relevant constitutional inference.

It does not automatically impose President's Rule. Article 356 still requires presidential satisfaction based on relevant material, parliamentary approval and temporal limits. *S.R. Bommai* makes the proclamation reviewable and ordinarily protects floor determination of political majority.

Thus, Articles 256-257 enable coordination, Article 365 marks serious non-compliance, and Article 356 supplies the exceptional remedy. Treating the sequence as automatic would convert federal directions into unrestricted Union

control.

Answer-prose count: 143 words.

Answer-writing focus: The answer separates coordination, evidentiary consequence and exceptional remedy with Bommai control. Cut the opening to one line; use a four-box chain and reserve the final sentence for why automaticity would destroy federal balance.

Original Q2. 10 marks | 150 words

Question: Distinguish the Inter-State Council, Zonal Councils, North Eastern Council and NITI Aayog by source, composition logic and function.

Demand decoding: Distinguish four bodies by legal source, composition logic and function.

Model solution

These bodies all facilitate coordination but have different legal foundations.

The **Inter-State Council** is contemplated by Article 263 and was established by presidential order in 1990. Chaired by the Prime Minister, it advises on disputes and common policy; its recommendations are not binding.

The **five Zonal Councils** are statutory bodies under the States Reorganisation Act, 1956. Chaired by the Union Home Minister, they address regional administrative and inter-State issues.

The **North Eastern Council** is a separate statutory institution under the NEC Act, 1971; it is not a sixth Zonal Council.

NITI Aayog was created by executive resolution in 2015. It is a policy and development forum, not a constitutional or statutory body and not a substitute for the Finance Commission.

Thus, "intergovernmental body" does not establish legal status. Article, statute and executive resolution must be separately identified.

Answer-prose count: 137 words.

Answer-writing focus: Each body is classified by Article, statute or executive resolution and the NEC trap is expressly closed. Present a compact four-row table; add that Article 263 enables presidential establishment rather than saying the Constitution itself permanently constituted the ISC.

Original Q3. 15 marks | 250 words

Question: Examine whether All-India Services strengthen administrative unity at an excessive cost to State autonomy.

Demand decoding: Examine both administrative-unity gains and State-autonomy costs before a balanced judgment.

Model solution

Article 312 permits common services for Union and States after a Rajya Sabha national-interest resolution. IAS, IPS and Indian Forest Service embody India's integrated administrative federalism.

Benefits: Common recruitment and training establish professional standards, enable movement of experience across States and Union, and provide continuity during crises. Officers serving State cadres possess local administrative knowledge while connecting implementation to national law and programmes. Ambedkar's "strategic posts" rationale remains relevant for a diverse federation.

Autonomy costs: Cadre allocation, deputation, disciplinary control and central empanelment can create divided accountability. States may perceive officer shortages or recall/deputation disputes as Union pressure. Uniform career incentives can also weaken responsiveness to local political priorities.

The design is not inherently anti-federal because officers work under State governments in State posts and new services require Rajya Sabha approval. The problem arises when shared control becomes unilateral command.

Reform should use transparent deputation rules, meaningful State consultation, predictable cadre strength, protection against partisan transfer, and joint performance frameworks. Specialised State services should be strengthened rather than displaced.

Thus, All-India Services are a federal bridge, not merely a centralising instrument. Their legitimacy depends on genuinely shared personnel governance.

Answer-prose count: 190 words.

Answer-writing focus: It gives constitutional basis, mechanisms, competing accountability concerns and implementable personnel reforms. Name the Rajya Sabha trigger early and compress benefits to three points so the shared-control reform paragraph remains visible.

Original Q4. 15 marks | 250 words

Question: Cesses, surcharges and centrally sponsored schemes can re-centralise fiscal federalism even when tax devolution remains high. Analyse.

Demand decoding: Analyse how non-divisible levies and conditional schemes alter effective autonomy despite a headline devolution share.

Model solution

The Finance Commission may recommend a substantial State share, but effective fiscal autonomy depends on the base being shared and the conditions attached to other transfers.

Article 270 distributes the divisible pool, while Article 271 permits Union-purpose surcharges whose proceeds are not shareable. Cesses are similarly commonly kept outside the divisible pool. Growth in these instruments can reduce the proportion of gross Union tax revenue subject to the stated devolution percentage.

Centrally sponsored schemes support national priorities and equal citizenship, but detailed guidelines, matching contributions and fragmented funding may constrain State budgeting. States carry major responsibilities in health, agriculture, police and local services, so conditional transfers can convert them into implementation agencies.

Counterarguments matter. Cesses can finance identifiable national externalities; schemes can reduce interstate inequality; and the 16th Finance Commission retains 41% rules-based vertical devolution. State capacity and accountability also justify performance conditions.

The corrective is not abolition but transparency and consent: sunset clauses and reporting for cesses, a protected divisible-pool base, fewer and more flexible schemes, predictable Union shares, outcome-based rather than input-heavy conditions, and regular ISC/GST consultation.

Thus, formal devolution and practical autonomy can diverge. Fiscal federalism must be evaluated through total transfer design, not the headline percentage alone.

Answer-prose count: 202 words.

Answer-writing focus: It distinguishes Article 270 from Article 271 and tests both justification and federal cost before calibrated reforms. Avoid unsupported quantitative claims; add a one-line distinction between the divisible pool and gross Union tax revenue.

Original Q5. 20 marks | 250 words

Question: Critically evaluate the constitutional and institutional framework for inter-State river-water disputes in India.

Demand decoding: Critically evaluate constitutional design, statutory process, implementation weaknesses and reform.

Model solution

River basins ignore political boundaries, making water disputes a test of federal adjudication, scientific capacity and political compliance.

Article 262 authorises Parliament to provide adjudication and exclude court jurisdiction. The Inter-State River Water Disputes Act, 1956 creates dispute-specific tribunals, while the River Boards Act, 1956 envisages cooperative basin management.

Strengths: Tribunals provide specialised fact-finding; awards are final and binding under statute; jurisdiction exclusion can prevent parallel litigation; Union facilitation offers a national forum.

Weaknesses: Delays occur in negotiation, tribunal creation, evidence and decision. States dispute flow data, project effects and distress-year sharing. Publication and implementation may generate new litigation. Ad-hoc tribunals lose institutional memory, and climate change makes historical averages less reliable.

The 2019 Amendment Bill proposed a dispute-resolution committee and permanent tribunal with benches, but it lapsed with the Seventeenth Lok Sabha. A later revised proposal is also not current law.

Reform requires a permanent professional secretariat even if benches remain dispute-specific, independent basin data, time-bound stages, ecological-flow and climate scenarios, transparent distress-sharing formulas, compliance monitoring and stronger river-basin organisations. Courts should retain narrow constitutional review while respecting Article 262's jurisdiction design.

Thus, adjudication is necessary but insufficient. Durable settlement requires continuous cooperative basin governance before and after an award.

Answer-prose count: 201 words.

Answer-writing focus: It covers Article 262, both 1956 laws, strengths, delay/data/climate limits and correctly bounded Bill status. Write the process as negotiation -> tribunal -> publication -> implementation; mention the Bill lapsed, not merely that it was unpassed.

Original Q6. 20 marks | 250 words

Question: The constitutional freedom of trade under Part XIII is a federal common-market guarantee, not a promise of tax-free commerce. Discuss with case law.

Demand decoding: Discuss Part XIII as a common-market guarantee using the current nine-judge doctrine.

Model solution

Articles 301-307 seek an integrated economic union while preserving regulatory and fiscal space.

Article 301 declares trade, commerce and intercourse throughout India free. Article 302 permits Parliament to impose public-interest restrictions. Article 303 generally bars preference or discrimination between States, with a parliamentary scarcity exception. States may levy non-discriminatory taxes under Article 304(a) and impose reasonable public-interest restrictions under Article 304(b) with previous presidential sanction.

Early cases complicated the framework. *Atiabari Tea* focused on measures directly and immediately restricting trade. *Automobile Transport* developed a compensatory-tax doctrine, allowing levies linked to trading facilities.

In *Jindal Stainless* (2016), a nine-judge bench rejected compensatory tax as lacking constitutional text. Article 301 does not create freedom from taxation. The central question for a State tax is hostile or protectionist discrimination under Article 304(a). Clauses (a) and (b) are distinct; a discriminatory tax cannot be saved merely as a reasonable restriction.

GST later supplied a constitutional fiscal mechanism for a common market through Articles 246A, 269A and 279A, though State participation and Council bargaining remain federal features.

Therefore, Part XIII balances integration with autonomy. It prohibits economic protectionism, not every tax or regulation. The modern test is non-discrimination, constitutional competence and procedural compliance.

Answer-prose count: 201 words.

Answer-writing focus: It maps Articles 301-304, traces doctrine and correctly centres *Jindal Stainless* on discrimination rather than tax immunity. Prioritise *Jindal Stainless*; compress the two older cases and explicitly separate Article 304(a) taxation from 304(b) restrictions.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Advanced 1 - Executive federalism as a repeated-game problem

- [ANALYSIS] Directions, assent, investigative consent, schemes and GST all operate repeatedly. A formally lawful one-time advantage may therefore impose a long-term trust cost on future cooperation.
- [ANALYSIS] Consultation is not a ceremonial courtesy where States possess implementation knowledge, expenditure responsibility or constitutionally assigned competence; it improves information and compliance.
- [LIMIT] Consultation does not create a State veto where the Constitution gives Parliament final competence.

Advanced 2 - Equalisation, incentives and fiscal moral hazard

- [ANALYSIS] Horizontal devolution balances need, disability, ecology, population, demographic performance and contribution. No criterion is politically neutral because each rewards a different account of fairness.
- [ANALYSIS] Equalisation protects comparable public services; incentive criteria may reward performance. Excessive conditions, however, can convert devolution into administrative control.
- [LIMIT] A devolution formula should be evaluated by official methodology and dated data, not by a single State's gain or loss.

Advanced 3 - Dispute systems need different doors

Dispute type	Best first institution	Binding backstop
Legal right between governments	Negotiation where possible	Article 131, subject to exclusions
Defined inter-State water dispute	Negotiation/data/mediation	Article 262 legislation and tribunal
Policy coordination	ISC, Zonal Council, GST Council or sector forum	Political accountability and enacted law
Administrative investigation	State consent and statutory protocol	Constitutional-court direction and judicial review

- [ANALYSIS] A mature federation does not send every disagreement to a court or every legal dispute to an advisory forum. Institutional fit is itself a federal safeguard.

CONSOLIDATED REGISTER NOTES

Four-channel diagnostic

- Legislative relations: Articles 245-255; competence, State-field gateways, State Bills and repugnancy.
- Administrative relations: Articles 256-263 plus relation-level Articles 355, 356-357, 365 and Article 312.
- Financial relations: Articles 266-293, Finance Commission, GST, grants, cesses/surcharges and borrowing.
- Inter-State relations: Articles 131, 261-263 and the Part XIII common-market boundary.
- Answer method: channel -> Article -> institution -> mechanism -> evidence -> qualification -> balanced reform.

Legislative operating map

- Article 245: Parliament for all/part of India; extra-territorial operation not by itself invalid. State law needs territorial nexus for extra-State effect.
- Article 246 + Seventh Schedule: Union, State and Concurrent fields; interpret entries broadly and harmoniously.
- Standard examination counts: Union 100, State 61, Concurrent 52; numbering includes omissions/insertions.
- Article 246A: simultaneous GST competence; Parliament exclusive for inter-State supplies.
- Article 247: additional courts for better administration of Union-field laws.
- Article 248 + Entry 97: residuary matter and tax with Parliament after Lists II/III are excluded.
- Forty-second Amendment moved education, forests, weights and measures, protection of wild animals and birds, and administration of justice from State to Concurrent List.

State-List gateways and survival

Article	Trigger	Duration / effect
249	Rajya Sabha, two-thirds present and voting, national interest	Resolution up to one year, renewable; law has six-month tail
250	National Emergency in operation	Law has six-month tail after Emergency
252	Resolutions of two or more States	Requesting/late-adopting States; Parliament alone amends/repeals
253	International treaty/agreement/convention/decision	No State-consent condition in the Article
356-357	President's Rule in the State	Law continues until altered/repealed/amended

- Article 251 gives temporary Union-law priority for Articles 249/250 only to the extent of inconsistency.

Doctrine and State-law controls

1. Pith and substance: identify true nature.
 2. Territorial nexus: test State-law geographical connection.
 3. Incidental encroachment: limited ancillary overlap may survive.
 4. Colourable legislation: substance cannot evade lack of competence.
 5. Delegated legislation: details may be delegated; essential policy and competence may not.
 6. Harmonious construction: preserve both fields where possible.
 7. Article 254: real Concurrent-field repugnancy; Union law ordinarily prevails.
 8. Article 254(2): President-assented State law may prevail in that State; Parliament can later override.
 9. Article 255: limited procedural cure for specified recommendation/sanction defects, not lack of competence.
- Article 200/201 and Article 304(b) previous sanction are different stages. Punjab Governor (2023) rejects indefinite inaction; the 2025 advisory opinion rejects fixed judicial timelines/deemed assent but permits limited mandamus against prolonged, unexplained and indefinite inaction.

Administrative relations

- Article 256: compliance with parliamentary/applicable law and necessary Union directions.
- Article 257: no impediment to Union executive power; communications and railway-protection directions; cost rules.
- Articles 258/258A: reciprocal entrustment with the other government's consent; Article 258(2) separately covers duties imposed by parliamentary law.
- Article 259 omitted; Article 260 concerns agreed functions in relation to territory outside India.
- Article 261: full faith and credit; Parliament may regulate proof/effect; civil judgments executable according to law.
- Article 312: Rajya Sabha two-thirds present-and-voting trigger; IAS, IPS and Indian Forest Service are All-India Services.
- DSPE Act section 6: ordinary CBI exercise in a State needs consent; Articles 32/226 court orders remain; 2024 West Bengal ruling decided preliminary maintainability only.
- Article 355 duty != Article 365 inference != Article 356 remedy != Article 357 consequence.

Fiscal Constitution

Provision	Rapid recall
266-267	Separate Consolidated Funds and Contingency Funds; appropriation/advances under law
268	Union levy, State collection/appropriation of specified duties
269	Union levy/collection and assignment of specified inter-State taxes
269A	Inter-State GST levy/collection and apportionment
270	Divisible-pool distribution
271	Union surcharge; GST excluded; whole proceeds to Union
273	Temporary historical jute-duty grant
274	Presidential recommendation for specified taxation Bills
275	Constitutional grants-in-aid
276	Profession-tax ceiling: Rs 2,500 per person annually
279	Net proceeds; CAG certification final
280-281	Finance Commission and laying before Parliament
282	Either level may grant for any public purpose
285/289	Qualified reciprocal tax immunities
292/293	Union and State borrowing

- Vertical imbalance: mismatch between governmental levels. Horizontal imbalance: unequal fiscal capacity/need among States.
- Sixteenth Finance Commission: report submitted 17 November 2025; award 2026-27 to 2030-31; accepted vertical share 41 percent of divisible pool.
- Horizontal weights: income distance 42.5; population 2011 17.5; demographic performance 10; area 10; forest 10; GDP contribution 10.
- Cesses and surcharges outside the divisible pool, conditional schemes and transfer timing shape effective autonomy.
- Kerala borrowing order, 1 April 2024: interim relief denied; Article 293 questions referred; merits not finally decided in that order.

GST federalism

- One Hundred and First Amendment: Articles 246A, 269A and 279A.
- Council quorum: one-half total membership.
- Formal decision: three-fourths weighted votes of members present/voting; Union one-third, States together two-thirds.
- *Mohit Minerals* (2022): recommendations are recommendatory/persuasive for primary legislation; Article 246A gives simultaneous power.
- Qualification: enacted laws bind, harmonisation matters, and non-binding does not mean institutionally irrelevant.

Inter-State water and dispute settlement

- Article 131: exclusive original jurisdiction for specified intergovernmental disputes involving a legal right, subject to constitutional exclusions.
- Article 262: Parliament may create water adjudication and exclude court jurisdiction.
- River Boards Act, 1956: advisory regulation/development route.
- Inter-State River Water Disputes Act, 1956: dispute-specific tribunal; notified decision final/binding under the statute; section 11 jurisdiction bar.

- The 2019 permanent-tribunal Bill did not become law. Teach the current dispute-specific framework and verify present status tribunal by tribunal.
- Water dispute answer: negotiation/data -> tribunal reference -> decision/notification -> management/implementation -> continuing basin cooperation.

Councils, recognition and market

- ISC: Article 263 enabling power; established 28 May 1990; advisory; official record's latest full meeting was 16 July 2016; reconstituted 8 November 2024.
- Five Zonal Councils: statutory under States Reorganisation Act, 1956; Union Home Minister chair; regional and advisory.
- NEC: separate North-Eastern Council Act, 1971; not a sixth Zonal Council.
- Article 261: public acts, records and proceedings recognised; civil judgments executable across India according to law.
- Articles 301-307: common market with public-interest and non-discrimination controls.
- *Jindal Stainless* (2016): no general tax immunity; Article 304(a) discrimination is central; Article 304(b) is a distinct reasonable-restriction route.

Commissions and reform use

- First ARC (1966-69): ISC, non-partisan Governors, delegation and more State resources.
- Rajamannar (1969-71): far-reaching State-autonomy programme; not adopted as law.
- Sarkaria (1983-88): strong Union without over-centralisation; Article 356 last resort; ISC; Concurrent consultation; neutral Governor norms.
- Punchhi (2007-10): stronger councils, updated Governor/fiscal norms and localised-emergency proposal; recommendations are not operative law by themselves.
- Trust reforms: consult before major shared-field law; publish reasons/data; protect predictable transfers; review cesses; allow flexible schemes; activate ISC; strengthen GST dispute resolution; use shared river data and enforce implementation.

Case-status firewall

- *State of West Bengal v. Union of India* (1962): States are not sovereign entities immune from valid Union legislation.
- *Hoechst Pharmaceuticals* (1983): Article 254 is a Concurrent-field repugnancy rule, not a universal overlap rule.
- *S.R. Bommai* (1994): federalism is Basic Structure; Article 356 is reviewable; majority ordinarily tested on the floor.
- *Mohit Minerals* (2022): GST Council recommendations non-binding for primary legislation.
- Punjab Governor (2023): Governor cannot keep Bills pending indefinitely.
- *State of West Bengal v. Union of India* (2024): CBI-consent suit survived preliminary objection; merits left open.
- *State of Kerala v. Union of India* (2024): interim borrowing relief refused; constitutional questions referred; interim observations do not decide final merits.

PYQ answer routes and final traps

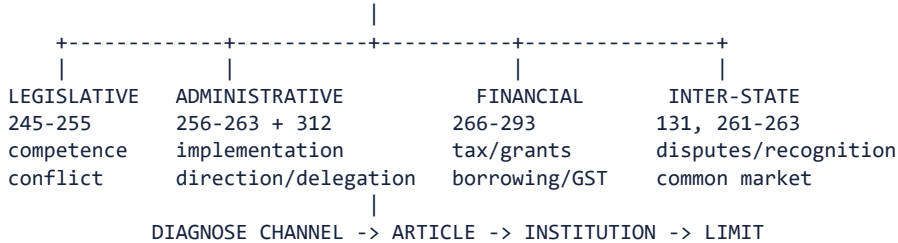
- 2019: pith/substance -> harmonious construction -> Article 246/254 supremacy.
- 2020: central capacity under disaster/Concurrent law -> Farm Acts competence controversy -> consultation and proportionality.
- 2021: DSPE consent is real; constitutional-court power and procedural status qualify it.
- 2022: party centralisation/autonomy preferences are office-dependent incentives, not fixed ideology.
- 2023 Article 356: *Bommai* plus coalition/regional politics; conflict shifted to other institutions.
- 2023 GST: accommodation through shared competence and bargaining, qualified by State fiscal-space concerns.
- 2024: diagnose changes and pair each trust deficit with an institution-specific remedy.
- 2025: plan-era discretion -> Finance Commission/GST/NITI -> continuing vertical imbalance.

- Traps: 249 != emergency; 252 != unilateral State repeal; 254 != every overlap; 365 != automatic 356; IFoS != Foreign Service; 41 percent divisible pool != gross taxes; ISC != Zonal Council; Article 301 != tax immunity; commission recommendation != law.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Four-dimensional constitutional map

CENTRAL QUESTION: HOW CAN UNION CAPACITY COEXIST WITH STATE AUTONOMY?



ASCII MASTER FLOW - PANEL 2/12: Territory, Lists, GST and residue

ARTICLE 245: Parliament whole/part of India; extra-territorial operation protected
-> State extra-State effect only with real and pertinent territorial nexus

ARTICLE 246 + SEVENTH SCHEDULE
-> List I Parliament | List II States | List III both
-> standard examination counts 100 / 61 / 52

ARTICLE 246A: simultaneous GST power; Parliament exclusive for inter-State supplies

ARTICLE 247: additional courts for Union-field laws

ARTICLE 248 + ENTRY 97: genuine residue, including tax, belongs to Parliament

CONTROL: test Lists II and III before calling a matter residuary.

ASCII MASTER FLOW - PANEL 3/12: Parliament in the State field

NORMAL RULE: LIST II -> STATES
 249: Rajya Sabha 2/3 present and voting; <=1 year; renewable; 6-month tail
 250: National Emergency; 6-month tail
 252: 2+ State resolutions; later adoption; Parliament alone amends/repeals
 253: treaty/agreement/convention/international decision
 356-357: President's Rule; law continues until altered/repealed/amended
 ARTICLE 251: 249/250 Union law prevails only while effective and to inconsistency extent
 TRAP: five doors, five triggers; no undefined general Union override.

ASCII MASTER FLOW - PANEL 4/12: Doctrines, repugnancy and State Bills

TRUE CHARACTER -> FIELD -> HARMONIOUS OPERATION -> CONFLICT
 pith and substance | territorial nexus | incidental encroachment
 colourable legislation | delegated details within parent Act
 ARTICLE 254: real Concurrent-field repugnancy
 254(1): Union priority
 254(2): President-assented State law may prevail in that State
 -> Parliament can later override
 ARTICLES 200/201: Governor/President stages | 304(b): previous sanction
 ARTICLE 255: limited procedural cure, never a cure for lack of competence.

ASCII MASTER FLOW - PANEL 5/12: Administrative cooperation and agencies

256: State compliance with parliamentary/applicable law + Union directions
257: no impediment; communications and railway-protection directions + cost rules
258(1): Union function -> State with consent
258(2): parliamentary law may confer duties; cost adjustment
258A: State function -> Union with consent
259 omitted | 260 agreed functions relating to territory outside India
312: Rajya Sabha trigger -> AIS common to Union and States
DSPE section 6: ordinary CBI State consent; Articles 32/226 court exception.

ASCII MASTER FLOW - PANEL 6/12: Duty, breakdown and judicial status

ARTICLE 355 DUTY

-> protect State; ensure constitutional government

ARTICLE 365

-> non-compliance may support an inference; not automatic President's Rule

ARTICLE 356

-> exceptional remedy; parliamentary control; BOMMAI review/floor test

ARTICLE 357

-> exercise/delegation of State legislative power; continuation rule

2024 WEST BENGAL CBI SUIT

-> preliminary objection rejected; merits expressly left open

BOUNDARY: detailed Emergency procedure belongs to Topic 14.

ASCII MASTER FLOW - PANEL 7/12: Financial Constitution

266-267: separate Consolidated and Contingency Funds

268: Union levy / State collection-appropriation

269: Union levy-collection / assignment | 269A: inter-State GST apportionment

270: divisible-pool distribution | 271: Union surcharge; GST excluded

273 historical temporary grant | 274 Presidential recommendation

275 constitutional grants | 276 profession tax <= Rs 2,500

279 net proceeds/CAG | 280-281 Finance Commission/laying | 282 public-purpose grants

285/289 qualified immunities | 292/293 borrowing.

ASCII MASTER FLOW - PANEL 8/12: Fiscal evolution, imbalance and borrowing

VERTICAL: Union-State revenue/responsibility mismatch

HORIZONTAL: unequal capacity and need among States

PLAN ERA -> Article 282 + Planning Commission/NDC

POST-2015 -> NITI + Finance Commission devolution + GST

16FC: report 17 Nov 2025; award 2026-31; accepted vertical share 41% divisible pool

HORIZONTAL: income distance 42.5 | population 17.5 | four criteria at 10 each

PRESSURES: cesses/surcharges | CSS conditions | transfer timing | Article 293

KERALA 2024: interim relief denied; 5-judge reference; merits not settled.

ASCII MASTER FLOW - PANEL 9/12: GST as negotiated fiscal federalism

101ST AMENDMENT

246A: simultaneous legislative power

269A: inter-State GST levy/collection and apportionment

279A: Council recommendation

COUNCIL: quorum 1/2 | decision 3/4 weighted

Union 1/3 | States together 2/3

MOHIT MINERALS, 2022:

recommendations persuasive/recommendatory for primary legislation

no automatic Article 254-style supremacy

CONTROL: non-binding != irrelevant; enacted law and statutory rules still bind.

ASCII MASTER FLOW - PANEL 10/12: Water disputes, Article 131 and councils

ARTICLE 131: qualifying government dispute + legal right + constitutional exclusions

ARTICLE 262: Parliament may provide adjudication and exclude courts

RIVER BOARDS ACT 1956: advisory regulation/development

WATER DISPUTES ACT 1956: dispute-specific tribunal + section 11 bar

2019 SINGLE-TRIBUNAL BILL: did not become law

ARTICLE 263 + 1990 ORDER: ISC inquiry/discussion/advice

SRA 1956: five Zonal Councils | NEC ACT 1971: separate body

ARTICLE 261: recognition/proof/effect + civil judgment execution.

ASCII MASTER FLOW - PANEL 11/12: Common market, commissions and close distinctions

PART XIII: 301 freedom -> 302 public interest -> 303 preference bar

-> 304(a) tax non-discrimination

-> 304(b) reasonable restriction + previous Presidential sanction

JINDAL STAINLESS: tax-free market rejected; discrimination is central

FIRST ARC: ISC/delegation/resources

RAJAMANNAR: far-reaching State autonomy

SARKARIA: strong Union without over-centralisation; 356 last resort; ISC

PUNCHHI: updated Governor/council/fiscal reforms

FIREWALL: recommendation != binding constitutional law.

ASCII MASTER FLOW - PANEL 12/12: Answer spine and balanced reform

DEFINE CHANNEL -> CITE ARTICLE -> EXPLAIN MECHANISM -> NAME EVIDENCE
 -> STATE PROCEDURAL / LEGAL LIMIT -> BALANCE CAPACITY AND AUTONOMY
 CHALLENGE REFORM
 assent/directions prompt reasons + text-bounded power
 cesses/transfers/CSS transparent base + predictability + flexibility
 GST disagreement data + deliberation + dispute mechanism
 borrowing conflict objective risk rules + reasons + adjudication
 river disputes shared data + timely award + implementation
 under-used ISC regular agenda + published follow-up
 VERDICT: consultation before compulsion; rules before discretion; implementation after award.